



DoD INSTRUCTION 1327.06

MILITARY LEAVE, LIBERTY, AND ADMINISTRATIVE ABSENCE

Originating Component: Office of the Under Secretary of Defense for Personnel and Readiness

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Reissues and Cancels: DoD Instruction 1327.06, "Leave and Liberty Policy and Procedures," June 16, 2009, as amended

Incorporates and Cancels: See Paragraph 1.3.

Approved by: Anthony J. Tata, Under Secretary of Defense for Personnel and Readiness

Purpose: In accordance with the authority in DoD Directive 5124.02, this issuance establishes policy, assigns responsibilities, and prescribes procedures for military leave, liberty, and administrative absences that:

- Provide uniformity amongst the Military Services in accordance with Section 704 of Title 10, United States Code (U.S.C.).
- Provide respite from the work environment in ways that improve performance and increase motivation.
- Provide time off to address personal business and personal or family emergencies that cannot be addressed through liberty.
- Ensure maximum use of accrued leave, minimize the loss of leave, and reduce the cost payments for unused accrued leave.

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SECTION 1: GENERAL ISSUANCE INFORMATION

1.1. APPLICABILITY.

This issuance applies to OSD, the Military Departments (including the United States Coast Guard (USCG) at all times, including when it is a Service in the Department of the Homeland Security by agreement with that Department), the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of Inspector General of the Department of Defense, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD (referred to collectively in this issuance as the “DoD Components”).

1.2. POLICY.

a. The DoD obtains the maximum benefit from the annual leave and liberty programs when commanders and supervisors provide Service members opportunities to take frequent periods of leave.

(1) When possible, Service members should annually receive at least one extended leave period of at least 14 consecutive days within the constraints of operational requirements.

(2) Service members will be authorized time to tend to emergency situations as well as other purposes as outlined in this issuance.

b. All unit commands, major headquarters, Military Departments, and the USCG will ensure non-mission essential tasks do not prevent the operation and administration of an effective leave program. Implementation of this issuance will contribute positively to Service members’ morale, level of performance, and career motivation.

1.3. INCORPORATES AND CANCELS.

a. This issuance incorporates and cancels:

(1) Directive-type Memorandum 22-004, “Reserve Component Maternity Leave Program,” June 9, 2022, as amended.

(2) Directive-type Memorandum 23-001, “Expansion of the Military Parental Leave Program,” January 4, 2023, as amended.

(3) Directive-type Memorandum 23-003, “Bereavement Leave for Service Members,” March 29, 2023, as amended.

(4) Under Secretary of Defense for Personnel and Readiness (USD(P&R)) Memorandum, “Non-Covered Assisted Reproductive Technology,” February 3, 2025.

b. This issuance cancels:

(1) USD(P&R) Memorandum, “Unused Post-Deployment Mobilization Respite Absence (PDMRA) for Reserve and National Guard Personnel,” January 14, 2009.

(2) Office of the USD(P&R) Memorandum, “Department Implementing Instruction Regarding Section 604, BENEFITS UNDER POST-DEPLOYMENT/MOBILIZATION RESPITE ABSENCE PROGRAM FOR CERTAIN PERIODS BEFORE IMPLEMENTATION OF PROGRAM, of the National Defense Authorization Act for Fiscal Year 2010 (FY10 NDAA),” February 1, 2010.

(3) Secretary of Defense Memorandum, “Parental Leave for Military Personnel in Connection with the Birth or Adoption of a Child,” March 23, 2018.

(4) Office of the Assistant Secretary of Defense for Manpower and Reserve Affairs (ASD(M&RA)) Memorandum, “Clarification of Convalescent Leave Policy for Service Members Recovering from Sexual Assault,” October 20, 2022.

SECTION 2: RESPONSIBILITIES

2.1. USD(P&R).

The USD(P&R) ensures Military Department and USCG military leave, liberty, and administrative absence policies and procedures are in accordance with this issuance and, to the extent feasible, uniform across the Military Services.

2.2. ASD(M&RA).

Under the authority, direction, and control of the USD(P&R), the ASD(M&RA):

- a. Develops, establishes, and maintains DoD guidance governing military leave, liberty, and administrative absence policy; develops DoD issuances, as necessary, to establish additional policy to implement this issuance.
- b. Monitors the effectiveness of Military Department and USCG policies and procedures regarding leave balances, lost leave, and cost of unused accrued leave payments.
- c. Designates authorized rest and recuperation (R&R) leave and non-chargeable R&R (NCR&R) leave locations and destinations.
- d. Adjudicates, as appropriate, requests for exceptions to policy provided in this issuance.

2.3. DEPUTY ASSISTANT SECRETARY OF DEFENSE FOR MILITARY PERSONNEL POLICY (DASD(MPP)).

Under the authority, direction, and control of the ASD(M&RA), the DASD(MPP):

- a. Reviews and makes recommendations to the ASD(M&RA) concerning policies related to leave, liberty, and administrative absences.
- b. Designates authorized funded environmental morale leave (FEMLE) duty locations and relief destinations.

2.4. SECRETARIES OF THE MILITARY DEPARTMENTS AND COMMANDANT OF THE USCG.

The Secretaries of the Military Departments and the Commandant of the USCG:

- a. Publish policies and guidance within their respective Component on leave, liberty, and administrative absence programs in accordance with this issuance.
- b. Require that implementing guidance allows leave to be taken annually as accrued, within the constraints of operational requirements.

- c. Establish programs to measure and reduce the amount of leave Service members lose.
- d. Direct unit commanders to allow Service members to use their accrued leave to reduce the cost of accrued leave payments.
- e. Adjudicate specific leave programs (e.g., special leave accrual (SLA)).

2.5. CHAIRMAN OF THE JOINT CHIEFS OF STAFF.

Through the Joint Staff Manpower and Personnel Directorate (J-1), the Chairman of the Joint Chiefs of Staff reviews proposed recommendations from the Combatant Commanders to designate specific duty locations as FEML, R&R, or NCR&R duty locations and recommends approval or disapproval of the Combatant Commanders' recommendations to the DASD(MPP) and the ASD(M&RA), as applicable.

2.6. COMBATANT COMMANDERS.

The Combatant Commanders:

- a. Designate authorized environmental morale leave (EML) duty locations and destinations.
- b. On a case-by-case basis, may waive the restriction preventing EML trips or FEML travel from being taken within 6 months of the beginning or end of a Service member's tour of duty.
- c. Recommend initial designation and re-certification of authorized FEML duty locations and relief destinations through the Joint Staff J-1 to the DASD(MPP).
- d. Recommend designation of specific duty locations as R&R or NCR&R duty locations and relief destinations through the Joint Staff J-1 to the ASD(M&RA).
- e. Approve the combination of R&R or NCR&R leave travel with other authorized travel upon Service members' requests, provided a determination is made that the combination of such travel is in the DoD's best interest. This authority may not be delegated below the general officer or flag officer (GO/FO) or Senior Executive Service (SES) or equivalent level.
- f. Approve the combination of active duty parental leave (ADPL) with R&R or NCR&R travel, upon Service members' requests, provided a determination is made that the combination of such travel is in the DoD's best interest.
- g. Terminate the R&R and NCR&R leave programs for locations that no longer meet the criteria established in this issuance and notify the Joint Staff J-1 and the ASD(M&RA) of the decision to terminate such programs.

SECTION 3: LEAVE PROCEDURES

3.1. ANNUAL LEAVE PROGRAMS.

All unit commanders will establish annual leave programs to provide Service members opportunities to take leave within the constraints of operational requirements.

a. To obtain maximum benefit from annual leave programs, commanders will provide Service members opportunities to take frequent periods of leave, including, whenever possible, at least one extended leave period each year of at least 14 consecutive days.

b. Unit commanders will counsel Service members who refuse to take leave throughout the year regarding their obligation to comply with military programs and policies and inform them that such refusal may result in their losing unused accrued leave.

3.2. IMPORTANT LEAVE PERIODS.

When encouraging a Service member to use leave, particular emphasis will be placed on granting leave:

a. Upon a permanent change of station (PCS) or after periods of difficult duty and long periods of deployment from the home station or port.

b. Upon reenlistment.

c. During Federal holiday periods when leave is traditionally taken.

d. When there is evidence of deteriorating health or morale, or when natural disasters or emergencies have personally affected Service members or their immediate family. Situation-dependent emergency leave may be appropriate in accordance with Paragraph 3.10.c.

e. For attendance at religious observances for which regular liberty is inadequate or inappropriate.

f. During the processing period incident to separation from active duty or retirement, when requested.

g. Before the end of an active duty tour for Reserve Component (RC) members. RC members:

(1) Who accrued leave during active service may carry over that leave to their next period of active service, subject to the accumulation limits in Section 701 of Title 10, U.S.C., without regard to separation or release from active service if the separation or release is under honorable conditions.

(2) May sell their unused accrued leave or a portion thereof in accordance with Section 501(b) of Title 37, U.S.C.

3.3. USING LEAVE.

Using leave as compensation or as a career continuation incentive through accruing large leave balances contradicts congressional intent to provide for Service members' health and welfare. Commanders will encourage and provide occasions for Service members to use their 30 days of accrued leave each year.

3.4. ADVICE OF LEAVE BALANCE.

Service members receive a leave balance update on their monthly leave and earnings statements, and they must provide this balance when requesting leave if their leave request program of record does not already include the balance.

3.5. AUTHORITY TO GRANT LEAVE AND LIBERTY.

Unit commanders may grant leave, liberty, and administrative absences, except where otherwise specified by this issuance.

a. Unit commanders may only delegate the authority to grant leave, liberty, and administrative absence, as provided in policies issued by the Secretary of the Military Department concerned or the Commandant of the USCG.

b. Service members undergoing treatment, isolation, or quarantine for an infectious or contagious disease may not be granted leave, liberty, or an administrative absence other than convalescent leave unless the attending health care provider determines:

- (1) The Service member poses no threat to public health.
- (2) The situation poses no threat to the Service member's health.

3.6. ENTITLEMENT AND ACCUMULATION.

Service members on active service orders for at least 30 days, regardless of their DoD Component, will accrue leave at the rate of 2.5 days for each month of active service pursuant to Section 701(a) of Title 10, U.S.C. Except as described in Paragraph 3.8. of this issuance or when a Service member is in a missing status, leave accumulated exceeding 60 days will be lost at the end of the fiscal year. Service members will not accrue leave while:

- a. Absent from duty without leave.
- b. On unauthorized absence.

c. Confined as the result of a court-martial sentence.

(1) Leave will not accrue during a military or civil confinement of more than 1 day if confinement is in connection with a court-martial sentence.

(2) If the Service member is acquitted, they will be credited with the leave that would have accrued.

d. In civilian confinement, unless after the Service member returns to duty the unit commander determines the absence was unavoidable. See Paragraph 5.2. of this issuance and Table 1-13 of Chapter 1 of Volume 7A of DoD 7000.14-R for circumstances in which periods of civilian confinement may be determined to be unavoidable for pay and entitlement purposes.

e. On appellate leave, pending completion of the appellate review when the Service member is sentenced by court-martial to a dismissal or to receive a punitive discharge pursuant to Section 876a of Title 10, U.S.C.

f. On excess leave.

3.7. FORFEITURE OF ACCRUED LEAVE.

a. In accordance with Section 501(e)(1) of Title 37, U.S.C., Service members who are discharged under other than honorable conditions will forfeit all credited accrued leave at the time of discharge. Service members who are discharged before completing 6 months of active duty because of a failure to serve satisfactorily will forfeit all accrued leave in accordance with Section 501(e)(2) of Title 37, U.S.C.

b. Forfeiting all accrued leave described in Paragraph 3.7.a. will apply to all Service members, including those with prior military service (i.e., breaks in military service of more than 90 consecutive days) who are separated for:

(1) Enlisted Separation Reasons.

(a) Defective enlistments and inductions (minority and fraudulent entry only).

(b) Entry-level performance and conduct.

(c) Unsatisfactory performance.

(d) Unsatisfactory participation in the Ready Reserve.

(e) Misconduct (e.g., minor disciplinary infractions, a pattern of misconduct, commission of a serious offense, or civilian conviction).

(f) Separation in lieu of trial by court-martial.

(g) Punitive discharge received by a court-martial sentence or an “other than honorable” discharge characterization received through administrative separation proceedings.

(h) Retention not clearly consistent with national security interests (unless the Service member receives an honorable discharge).

(2) Officer Separation Reasons.

(a) Substandard performance of duty (unless the officer receives an honorable discharge).

(b) Acts of misconduct or moral or professional dereliction.

(c) Dropped from the rolls.

(d) Sentence by court-martial to dismissal.

(e) Retention not clearly consistent with national security interests (unless the Service member receives an honorable discharge).

3.8. SLA FOR AUTHORIZED SERVICE MEMBERS.

Pursuant to Section 701(e) of Title 10, U.S.C., Service members assigned to one or more of the conditions listed in Paragraphs 3.8.b. and 3.8.c. of this issuance may carry accrued leave exceeding the 60-day limit forward into the next fiscal year if they receive written approval from the first officer in the grade above O-6 in their chain of command. The accrued leave exceeding 60 days that is approved to be carried forward will be SLA leave. The number of days of SLA leave that Service members may carry forward from one fiscal year to the next is capped at 30 days. A Service member authorized SLA leave may carry forward a combined total leave balance of up to 90 days (i.e., 60 days accrued leave and 30 days SLA leave) until the end of the second fiscal year following the fiscal year in which the qualifying service is terminated.

a. Combat Zone Tax Exclusion (CZTE) or Combat Zone (CZ) Tax Relief.

(1) The conditions of service that qualify Service members for SLA leave may occur in conditions that also qualify them for CZTE or CZ tax relief in accordance with DoDI 1340.25 and Chapter 44 of Volume 7A of DoD 7000.14-R. The Military Services must be able to distinguish between tax-exempt and taxable accrued leave in SLA conditions in accordance with Chapter 35 of Volume 7A of DoD 7000.14-R.

(2) Leave accrued while in a CZ, qualified hazardous duty area (QHDA), or designated direct support area of a CZ or QHDA, or while hospitalized because of action in such zone or areas, is known and referred to in this issuance as “CZTE leave.” All leave accrued during a month in which a Service member, for any period, is in a CZ, QHDA, or designated direct support area of a CZ or QHDA is CZTE leave. A single day of qualifying service in such circumstances qualifies all annual leave accrued in that month as CZTE leave. See Paragraph 3.8.f. for details regarding the sell back of CZTE leave.

b. Hostile Fire or Imminent Danger.

Service members who serve on active duty continuously for at least 120 days in an area where they are entitled to special pay for duty subject to hostile fire or imminent danger in accordance with DoDI 1340.09 and Chapter 10 of Volume 7A of DoD 7000.14-R may be approved to carry accrued leave exceeding the 60-day limit forward into the next fiscal year as described in Paragraph 3.8.

c. Assignment to a Designated Deployable Ship, Mobile Unit, or Other Qualifying Duty.

(1) Service members who are assigned to a designated deployable ship, mobile unit, or other qualifying duty as determined by the Secretary of the Military Department concerned or the Commandant of the USCG, may be approved to carry accrued leave exceeding the 60-day limit forward into the next fiscal year as described in Paragraph 3.8.

(2) The situation preventing Service members assigned to such activities from using accrued leave must have been caused by catastrophe, national emergency or crisis, or operations in defense of national security.

d. Designation of Specific Operational Missions.

The Secretary of the Military Department concerned or the Commandant of the USCG will designate those Service members who are authorized SLA in accordance with Paragraph 3.8.c., and may designate specific operational missions that qualify Service members in their respective Military Departments and the USCG for SLA. This authority may not be delegated below the next command subordinate to the headquarters level that directs leave policy for the Military Service concerned.

(1) Once a specific operational mission is designated as qualifying for SLA, the authority for approving SLA for Service members assigned to unit, headquarters, and supporting staffs prohibited from taking leave due to their involvement in a designated mission is the first officer in the grade above O-6 in their chain of command. The officer approving the SLA for a Service member must record the approval in writing.

(2) Once a specific operational mission is designated as qualifying for SLA, the authority for approving SLA for Service members assigned to joint organizations prohibited from taking leave due to their involvement in a designated mission is the first officer in the grade above O-6 in the chain of command. The officer approving the SLA for a Service member must record the approval in writing.

e. Prohibitions.

SLA will not be used to authorize leave exceeding 60 days that is a result of Service members' failure to properly manage their accrued leave balances.

f. Sell Back.

(1) Sell Back of Unused Accrued Leave.

(a) Service members who have unused accrued leave in their account on the date of their discharge as defined in Section 501 of Title 37, U.S.C. are entitled to be paid for that leave based on the basic pay to which they are entitled on the date of discharge. See Section 501 of Title 37, U.S.C. and Chapter 35 of Volume 7A of DoD 7000.14-R for specific terms, conditions, and limitations governing whether Service members may be paid for unused annual leave, to include RC leave disposition.

(b) Payments for unused accrued CZTE leave for Service members are exempt from Federal taxation and not subject to Federal or State income tax withholding up to the monthly limit specified in Chapter 44 of Volume 7A of DoD 7000.14-R. The monthly limit on the value of tax-exempt payments and exemption from withholdings is different for enlisted Service members and commissioned officers. Tax exemption may only be given for the value of the portion of the CZTE leave that does not exceed the limitation available. Any payments for CZTE leave for the value that exceeds the limitation will be treated as taxable income. See DoDI 1340.25 and Chapters 35 and 44 of Volume 7A of DoD 7000.14-R for specific terms, conditions, and limitations.

(2) Sell Back of Unused Accrued SLA Leave.

(a) Enlisted Service members who would lose accumulated leave exceeding 90 days in accordance with Section 701(e) of Title 10, U.S.C. may elect, at any time, to use the SLA leave sell-back option authorized in Section 501(b)(6) of Title 37, U.S.C.

(b) Enlisted Service members may sell back up to 30 days of SLA leave. The sell back will count toward the enlisted Service member's sell back cap of 60 days over a career. The sell back of such leave may qualify for CZTE as described in Paragraph 3.8.f.(1).

(c) Enlisted Service members may exercise this option as described in this paragraph only once throughout their career.

(d) This provision has no termination date.

g. Reduced Cap and Transition Period Ending September 30, 2026.

(1) Pursuant to Section 632 of Public Law 117-263:

(a) The number of days of SLA leave a Service member may carry forward into a new fiscal year from a 60-day cap (i.e., above the normal 60-day carry forward limit for a maximum total of 120 days) is reduced to a 30-day cap (i.e., above the normal 60-day carry forward limit for a maximum total of 90 days).

(b) There will be a transition period from the previous 60-day cap to the 30-day cap on SLA leave for Service members whose total leave balance exceeded 90 days on December 31, 2022. The maximum transition period authorized expires on September 30, 2026. The specific

length of the transition period that may be afforded to an affected Service member is highly dependent on the individual circumstance and may be less than the 3-year maximum authorized by Section 632 of Public Law 117-263.

(2) The guidance in this paragraph addresses the transition period in various situations, including guidance on the appropriate length of the transition period.

(a) A Service member with a total leave balance of 90.5 or greater days on December 31, 2022, was authorized to carry forward into Fiscal Year 2024 no greater than a balance of 60 days of accrued leave and no greater than the number of days of SLA leave the Service member had on December 31, 2022. The original expiration date of the SLA leave remains unchanged, except that portion of SLA leave days that exceed 30 days will expire no later than September 30, 2026, if not used on or before that date.

(b) A Service member with a total leave balance of 90 or fewer days on December 31, 2022, was authorized to carry forward no greater than 60 days of accrued leave and no greater than 30 days of SLA leave into Fiscal Year 2024. The original expiration date of this SLA leave remains unchanged.

(c) The 7.5 days of leave accrued by a Service member from October 1, 2022, through December 31, 2022, may not be approved as SLA leave unless the Service member served in a qualifying SLA duty during that period.

(d) A Service member with 30 or greater days of SLA leave on December 31, 2022, may not earn additional days of SLA leave unless their SLA leave is reduced below 30 days, in which case the additional days of SLA leave when added to the existing SLA leave is capped at 30 days.

3.9. COMPUTATION OF LEAVE.

Annual leave must be accounted for by crediting leave sequentially in the chronological order in which it is accrued. Normally, annual leave when used will be charged with the most recently accrued leave charged first. This method of charging leave is referred to as last in, first out. Leave, when used, must be charged in a last-in, first-out manner, except:

a. CZTE leave will be used first, regardless of when it is accrued. For Service members with advance annual leave balances, CZTE leave will accrue when:

(1) The Service member's annual leave balance becomes greater than zero.

(2) The Service member continues to serve in a designated CZTE area.

b. Saved leave balance (SLB) is used last.

3.10. CHARGEABLE LEAVE.

These types of leave are chargeable toward the Service member's leave balance.

a. Annual Leave.

Service members may take annual leave. Unit commanders authorized to grant leave will establish and regulate schedules to maximize the use of accrued leave in accordance with operational requirements, training workloads, and the Service member's desires.

b. Advance Leave.

In accordance with Section 701(g) of Title 10, U.S.C., advance leave is a means whereby Service members with limited or no accrued leave may be granted leave to resolve urgent, personal, or emergency situations. Regardless of the amount of advance leave requested, all accrued leave must be taken before the Service member may enter an advance leave status. Service members in an advance leave status continue to accrue pay, allowances, and annual leave. Advance leave must be limited to the minimum amount needed. It may be granted within these limitations:

(1) To avoid excessive negative leave balances, advance leave will normally be limited to the lesser of:

- (a) 30 days;
- (b) The leave that will be earned during the remaining period of active service; or
- (c) While serving on an extension, leave that will be accrued before the Service member's date of separation.

(2) Advance leave exceeding 30 days will be authorized by the Secretary of the Military Department concerned or the Commandant of the USCG.

(3) Service members separated while in an advance leave status will have their advance leave treated as excess leave upon the date of separation. Excess leave is a no-pay status. The treatment of advance leave as excess leave may result in the collection, if applicable, of daily value of pay and allowances paid to a Service member for each day of excess leave in accordance with the policies of the Military Departments and USCG. See Paragraph 3.11.h. for additional details regarding excess leave.

(4) When Service members are in an advance leave status and are separated before their normal expiration of enlistment or term of service for immediate reenlistment, accepting an appointment as an officer or warrant officer, they may elect to have advance leave up to 30 days or the maximum number of days of leave that could be earned in the new term of service, whichever is less, carried over to that new reenlistment or term of service to count against leave that will accrue on the new reenlistment or term of service.

(5) Advance leave will not be authorized together with any excess leave authorized for personnel in professional degree, officer procurement, punitive discharge, administrative discharge, or disability discharge programs.

c. Emergency Leave.

When circumstances permit, emergency leave and extensions thereto will be granted to Service members for family emergencies involving members of their household or their immediate family. Swift and sensitive action on emergency leave requests is essential. However, care must be taken to verify an emergency does exist and the Service member's presence can resolve or alleviate the situation.

(1) Assistance in determining the validity and need for the Service member's presence should be requested from the American Red Cross (for a non-DoD affiliated family member) or the Service personnel office nearest to the location of the emergency.

(2) Caution must be taken to ensure delays in obtaining verification do not result in the Service member arriving too late to accomplish the purpose for which the emergency leave is intended.

(3) Emergency leave may be appropriate when:

(a) A member of the household or immediate family has died.

(b) The Service member's presence would contribute to the welfare of a dying member of the household or immediate family.

(c) Serious illness of a member of the household or immediate family imposes a demand on the Service member that must be met immediately and cannot be accomplished from the duty station or by any other means.

(d) The Service member's failure to return home places a severe and unusual hardship on the Service member, their household, or their immediate family.

(4) Emergency leave is chargeable leave. Unit commanders may authorize up to 30 days of emergency leave. The Secretary of the Military Department concerned or the Commandant of the USCG may authorize requests exceeding 30 days.

(5) In accordance with Section 709 of Title 10, U.S.C., the Secretary of the Military Department concerned or Commandant of the USCG may grant non-chargeable emergency leave of absence for a qualifying emergency. See Paragraph 3.11.i. for additional information concerning emergency leave of absences.

(6) Emergency leave travel at U.S. Government expense, including travel for dependents in emergency situations, will be authorized in accordance with DoDI 4515.13 and Chapter 4 of the Joint Travel Regulations (JTR).

(a) Authorized transportation expenses are chargeable to the appropriated funds that support the temporary duty (TDY) travel of the Service member's assigned unit. However, emergency leave will not be denied solely because of lack of funds for authorized funded emergency leave travel, nor will emergency leave be granted to either increase the Service member's travel priority or offset personal travel costs.

(b) Time spent in emergency leave travel authorized at U.S. Government expense or on military aircraft will not be charged to the Service member's leave account.

(7) Unit commanders may grant emergency leave for situations not involving members of the Service member's household or immediate family. This includes situations involving relatives such as grandparents or other family members who may have provided significant care to the Service member. However, the provisions in Paragraph 3.10.c.(3) are not applicable and travel and transportation allowances at U.S. Government expense are not authorized.

d. Reenlistment Leave.

In accordance with Section 703(a) of Title 10, U.S.C., up to 90 days leave, incident to reenlistment, may be authorized for Service members if advance leave involved does not exceed 30 days.

(1) Except for emergency leave, the first leave taken after reenlistment will be considered reenlistment leave and should begin immediately upon reenlistment. However, reenlistment leave may be:

(a) Delayed to begin after completing an instruction course that begins within 30 days of reenlistment or upon transfer from an overseas station incident to the Service member's reenlistment.

(b) Deferred for reasons of operational necessity.

(2) Reenlistment leave will be deducted from annual leave accrued during active service before reenlistment or charged against annual leave that may accrue during future active service, or both.

(3) Reenlistment leave is a chargeable leave.

e. Leave in Conjunction with PCS.

In conjunction with a PCS movement, Service members are authorized at least 30 days delay-en-route leave if no excess leave is involved. Service members should not be asked to take less than the full amount of leave authorized between duty stations. Military operational requirements are the only exception as determined by the Service member's unit commander.

(1) For Service members completing recruit training, delay-en-route leave should be at least 10 days before reporting to their first duty station. However, if the initial PCS is an overseas station or home port, this delay should be 14 days or more.

(2) Upon completing officer candidate training, newly commissioned officers are authorized 30 days leave (advance leave if needed) upon graduation and before reporting to their first duty station.

f. Leave Travel in Connection with Consecutive Overseas Assignments.

(1) In accordance with Section 452(b)(3) of Title 37, U.S.C., Service members stationed outside the continental United States (OCONUS) who are ordered to a consecutive overseas tour (COT) of duty at the same duty station or are reassigned PCS to another overseas duty station, may be paid travel and transportation allowances in connection with authorized leave from their last duty station.

(a) The tours of duty, whether at the same or new duty station, must be the authorized tours in accordance with the JTR Supplement, "Tour Lengths and Tours of Duty Outside the Continental United States (OCONUS)."

(b) Travel entitlements may not exceed those authorized by the JTR.

(c) Service members and dependents may travel together or independently.

(2) Service members who will be serving on an in-place COT must complete their initial tour, including voluntary extension, and agree to serve the prescribed tour length elected and be authorized by the Military Service concerned before serving the prescribed tour length elected.

(3) To receive travel and transportation allowances authorized in the JTR, a Service member reassigned PCS to another overseas duty station must:

(a) Serve the prescribed tour at the new permanent duty station and one of the tours must be unaccompanied; or

(b) If both tours are accompanied, the total time served between the two locations must equal at least the sum of the unaccompanied tour lengths for those locations or as otherwise required pursuant to DoDI 1315.18.

(4) Leave travel in connection with COTs will be performed in a duty status and the amount of leave authorized will be determined by the Secretary of the Military Department concerned or Commandant of the USCG.

(a) Service members authorized travel and transportation allowances in accordance with Section 452(b)(3) of Title 37, U.S.C., and unable to use leave between permanent duty stations may defer leave travel between the two tours of duty and use such allowances during the second tour of duty.

1. The leave travel must be completed before the end of the second tour of duty, or it will expire.

2. If Service members are unable to travel because of duty in conjunction with a contingency operation, they may defer leave travel up to 1 year after the completion of such duties that precluded travel.

(b) The Secretary of the Military Department concerned or Commandant of the USCG may approve the combination of leave travel in connection with a consecutive overseas assignment with other authorized travel upon Service member request, provided the combination of travel is in the DoD's best interest.

g. Terminal Leave.

To prevent the loss of annual leave and minimize accrued leave payments, absence on leave (also known as terminal leave) at the time of retirement, separation, or release from active duty to deplete accrued leave balances without returning to the separation site should be granted if desired by the Service member. If Service members desire leave without returning to the separation site, they must have their retirement, separation, or release orders in their possession and must have completed all administrative processing before departing on terminal leave. The retirement or separation date must occur upon completion of the authorized terminal leave period.

h. EML and FEML.

(1) General Information.

A Service member assigned to an overseas duty location that includes extraordinarily difficult living conditions or adverse environmental conditions, as described in Paragraph 3.10.h.(3), that would offset the full benefits of annual leave programs may obtain EML or FEML based on:

(a) Geographic isolation, substandard housing, inadequate commercial transportation, and lack of cultural and recreational facilities;

(b) Notably unhealthy conditions (e.g., high incidence of disease and epidemics, lack of public sanitation, and inadequate health control measures); or

(c) Excessive physical hardship (e.g., adverse effects of climate and altitude and dangerous conditions affecting life, physical well-being, or mental health).

(2) EML Program.

(a) The EML program uses DoD-owned or controlled military airlift to further annual leave objectives.

(b) The appropriate geographic Combatant Commander (GCCDR) will designate authorized EML duty locations and relief destinations.

(c) The necessary adverse environmental conditions for the EML program are normally present at those overseas locations where the accompanied-by-dependents tour length

is 24 months or less. Prescribed overseas tour lengths are contained in the JTR Supplement, “Tour Lengths and Tours of Duty Outside the Continental United States (OCONUS).”

(d) Permanently assigned Service members, regardless of their accompanied status, and their command-sponsored dependents may be provided space available air transportation from EML duty locations to take accrued leave at an EML relief destination site. The Service member and their dependents may take no more than two EML trips per calendar year.

(e) Except for those Service members assigned to dependent-restricted areas, EML trips may not be taken within 6 months of the beginning or end of the Service member’s tour of duty at the eligible location.

1. The appropriate GCCDR may waive the 6-month rule on a case-by-case basis.

2. The Secretary of the Military Department concerned or the Commandant of the USCG may establish, for operational necessity, the time frames in which an eligible Service member may take EML.

(3) EML Locations.

Such locations may be described by:

(a) Extraordinarily difficult living conditions, such as:

1. Geographic isolation;
2. Substandard housing;
3. Inadequate commercial transportation; or
4. Lack of cultural and recreational facilities.

(b) Notably unhealthy living conditions, such as:

1. A high incidence of disease and epidemics;
2. Lack of public sanitation;
3. Inadequate health control measures; or
4. Excessive physical hardship (e.g., adverse effects of climate and altitude, dangerous conditions affecting life, physical well-being, or mental health).

(4) FEML Program.

FEML provides Service members who are permanently assigned to an authorized FEML duty location a respite from isolation and austere or unhealthful conditions. FEML is reserved for duty locations where the Service member and their dependents cannot readily obtain relief from the adverse conditions by automobile; space-available military air; or commercial land, air,

or sea travel without severe uncertainty in travel arrangements, hazards to personal safety, or inordinate expense.

(a) FEML provides U.S. Government-funded transportation from the FEML duty location to the designated FEML relief destination. The DASD(MPP) will designate the authorized FEML duty locations and relief destinations.

(b) In addition to the conditions in Paragraph 3.10.h.(3), FEML duty locations must include at least four of these conditions:

1. The duty location has a 20 percent or higher post hardship differential as determined by the Department of State.

2. Service members assigned to the duty location receive the maximum amount of hardship duty pay – location (HDP-L), in accordance with DoDI 1340.26.

3. The duty location is designated as an imminent danger pay area and Service members receive less than the maximum amount of HDP-L because the location is designated an imminent danger pay area.

4. The location is not a relief destination for another FEML or EML location.

5. Local travel is performed in bulletproof or up-armored vehicles.

6. School-age dependents are restricted from traveling to the location.

7. The security standards require very limited travel outside a protected compound or living area.

8. There are significant cultural or religious belief systems, recognized by the host nation government, that result in Service members' activities and movements being severely limited.

(c) FEML applies to Service members assigned to a prescribed OCONUS foreign area tour who incur a tour length of at least 24 consecutive months, including voluntary extensions.

1. A Service member assigned to a 24-month tour is eligible for one round-trip FEML trip. A member assigned to a 36-month tour is eligible for two round-trip FEML trips. No more than two FEML trips will be authorized for any overseas tour, including extensions to that tour.

2. For the Service member's dependents to participate, they must be command-sponsored.

3. A FEML trip may not be taken within 6 months of the beginning or end of the Service member's tour of duty. The Combatant Commanders may waive this rule on a case-by-case basis.

(d) The appropriate GCCDR will recommend designating a specific location as a FEML duty location through the Joint Staff J-1, to the DASD(MPP). Such requests will incorporate the FEML data sheet in Section 6. The GCCDR requesting the designation will complete the data sheet and propose the FEML relief destination.

(e) Designated FEML duty locations and relief destinations will be reviewed and recertified periodically as directed by the DASD(MPP). Under the authority, direction, and control of the DASD(MPP), the Director, Military Compensation and Financial Readiness will conduct the review and validate the designated FEML duty locations on behalf of the DASD(MPP). The review and validation of the locations will be based on the appropriate GCCDR's recommendation with a completed data sheet through the Joint Staff J-1 and in coordination with the Military Departments and the USCG.

(5) EML and FEML Relief Destinations.

(a) Normal military airlift routes (i.e., EML or FEML) and commercial air (i.e., FEML only) routes will be considered in determining relief destinations. Relief destinations:

1. Will be limited to the closest location within the applicable Combatant Command area of responsibility offering environmental relief, suitable accommodations, and recreational facilities.

2. May not be an EML or FEML location.

(b) In requesting or recommending relief destinations, commanders, no lower than a GO/FO or SES equivalent level, must duly consider:

1. A favorable political, social, economic, and climatic environment.

2. Availability of facilities, activities, and services.

3. The cost of transportation.

4. Availability of military airlift (i.e., space-available for EML and space-required for FEML) or commercial transportation.

(c) Continental United States (CONUS) relief destination recommendations will be limited to situations where alternative relief destinations are cost prohibitive or closer relief alternatives in adjacent Combatant Command areas of responsibility do not meet the criteria in Paragraph 3.10.h.(5)(b).

(6) Transportation.

(a) While eligible participants may be provided military air (i.e., EML or FEML) or commercial air transportation (i.e., FEML only) at U.S. Government expense between the designated EML and FEML duty locations and relief destinations in accordance with DoDI 4515.13 and Chapter 4 of the JTR, commanders at all levels must use military air resources if available when approving requests for FEML transportation.

(b) Regardless of whether military or commercial resources are used, participants may travel to locations other than those approved by the DASD(MPP). When such deviations are made, total transportation costs cannot exceed the costs that would have been incurred if they had traveled to and from the designated FEML relief destinations.

(7) Travel Time and Leave Accounting.

(a) EML Program.

1. Time spent in a travel status will not be charged as annual leave. However, the rest of the absence will be charged as annual leave.

2. A Service member is in a travel status:

a. During direct travel between authorized locations by available transportation.

b. While awaiting transportation connections and during delays *en route* that are beyond the Service member's control.

3. For other travel for personal convenience, a Service member's travel status is limited to the constructed travel time that is equal to the time required for direct travel between authorized locations by available transportation.

(b) FEML Program.

Time spent in a travel status will not be charged as annual leave; however, the rest of the trip will be charged as annual leave.

i. R&R Leave Program.

(1) The R&R leave program provides R&R leave (i.e., annual leave) and U.S. Government-funded transportation from the designated overseas R&R duty location to the designated R&R relief destination. R&R duty locations must be in an area that meets these criteria:

(a) Dependent-restricted.

(b) Designated for hostile fire or imminent danger pay, pursuant to Section 351 of Title 37, U.S.C.

(c) Entry of Service members on official or unofficial travel is controlled (See the DoD Foreign Clearance Guide for the current list of restricted locations at <https://www.fcg.pentagon.mil/fcg.cfm>).

(d) Annual leave programs have been restricted due to military necessity.

(2) The appropriate GCCDRs will recommend designating a specific duty location as an R&R duty location to the ASD(M&RA) through the Joint Staff J-1.

(a) The ASD(M&RA) will designate authorized R&R duty locations and relief destinations. Authorized R&R duty locations and relief destinations are contained in the JTR Supplement, “Authorized Rest and Recuperation Locations and Destinations.”

(b) R&R leave will only be granted to Service members that are deployed to an designated R&R duty location for at least 12 months. Any period of pre-deployment in an area not designated as a R&R duty location will not count toward the 12-month requirement.

(3) Travel governed by the R&R leave program may not be combined with liberty, administrative absences, TDY, or travel for other purposes. However, the appropriate GCCDR may approve the combination of ADPL with R&R leave, upon Service member request, if the combination is in the DoD’s best interest. Further, the GCCDR may approve the combination of R&R travel with other authorized travel upon Service member request if combining travel is in the DoD’s best interest. This authority may not be delegated below the GO/FO or SES equivalent level.

(4) Transportation to and from R&R relief destinations will be provided on a space-required basis, unless otherwise authorized by the ASD(M&RA), and travel time will not be charged to the Service member’s leave account. The actual leave period at the R&R relief destination will be charged to the Service member’s leave account, except for ADPL, if authorized.

(5) Transportation will be to a location outside the United States having suitable social, climatic, or environmental conditions than those at the R&R duty location or to a location in the United States.

(6) R&R leave periods will be limited to one per 12-month deployment, including extensions, to an approved R&R relief destination. Service members deployed to an approved R&R duty location for at least 18 months may take one additional R&R leave period after the 18-month point.

(7) The applicable GCCDR will terminate the R&R leave program immediately when a duty location no longer meets the criteria in Paragraph 3.10.i.(1) and will notify the Joint Staff J-1 and the ASD(M&RA) of the decision to terminate the designation of R&R for that duty location.

j. Court Determination or Child Support Leave.

In accordance with Section 704(c) of Title 10, U.S.C., the unit commander will grant annual leave to a Service member who requests leave to attend a hearing to determine paternity or to determine an obligation to provide child support unless:

(1) The Service member is serving in or with a unit deployed in support of a contingency operation; or

(2) The needs of the Military Service concerned require a denial of such a request.

k. Continuation or Recall of Retirees.

At the discretion of the Secretary of the Military Department concerned or the Commandant of the United States Coast Guard, retiring or retired Service members who are subsequently continued on, or recalled to, active duty may have accrued leave that was accumulated during their service before retirement carried forward to their service after retirement pursuant to Section 701(c) of Title 10, U.S.C.

(1) The Secretary of the Military Department concerned or the Commandant of the USCG may, for operational reasons, limit the number of consecutive days of leave that a continued or recalled retiree may take.

(2) The Secretary of the Military Department concerned and the Commandant of the USCG may not, as a condition of the continuation or recall action, prohibit Service members from taking leave accrued during the new period of military service.

l. SLB.

(1) Pursuant to Section 304(h) of Public Law 94-361, the SLB was established on September 1, 1976. Accrued leave due on August 31, 1976, became the SLB. Leave accounts that showed an advance leave balance on August 31, 1976, do not have an SLB.

(2) A Service member with an SLB may use the leave before retirement or sell it back upon retirement.

(3) A Service member's SLB is tracked, maintained, and liquidated by the Defense Finance and Accounting Service.

3.11. NON-CHARGEABLE LEAVE.

These types of leave are not chargeable toward the Service member's leave balance.

a. Convalescent Leave.

In accordance with Sections 701(h) and 701(m) of Title 10, U.S.C. and procedures established by this issuance, a Service member's unit commander or the director of a military medical treatment facility (MMTF) may grant convalescent leave to a Service member, during active service, who is diagnosed with a medical condition and is determined not yet fit for duty as a result of that condition. The Service member's medical or behavioral health care provider determines such member's fitness for duty and may recommend convalescent leave to provide for the Service member's recovery.

(1) Convalescent leave:

(a) Except for a Service member who has given birth, convalescent leave must not exceed 30 days with respect to a Service member's medical condition unless such leave exceeding 30 days is authorized by the Secretary of the Military Department concerned or the

Commandant of the USCG. Such authority may be delegated, in writing, to an individual no lower than the grade of O-5, or a civilian employee of equivalent grade. Convalescent leave for a Service member who has given birth is addressed in Paragraphs 3.11.a.(1)(b) and 3.11.c.(3)(a).3. In granting convalescent leave, the unit commander or the MMTF director must:

1. Limit the duration to the minimum that is essential in relation to the diagnosis, prognosis, and probable final disposition of the Service member's medical condition.

2. Approve convalescent leave tailored to the Service member's specific medical needs rather than based on a predetermined formula.

(b) May be authorized as part of the treatment of pregnant Service members experiencing complications or illnesses to ensure maternal-fetal health and for the recovery of a Service member from giving birth if the health care provider recommends such leave, in writing, to address a diagnosed medical condition (e.g., recovery from the physical and psychological effects of childbirth) and the unit commander approves the leave.

1. A health care provider's recommendation for convalescent leave must be based upon the Service member's individual health circumstances and medical diagnosis, and may be informed by appropriate standards of care and health care provider clinical judgment.

2. When a Service member is using a provider outside the MMTF for their pregnancy and postpartum care, the unit commander may consult with an MMTF health care provider, as necessary, to approve convalescent leave recommendations made by the provider outside the MMTF.

3. The period of convalescent leave immediately following childbirth will be taken in one increment. Convalescent leave will begin on the first full day after the birth of the child or the date of release of the Service member from the hospital or similar facility where the birth took place, whichever is later.

(c) Service members who experience a sexual assault and have an identified medical condition resulting from the sexual assault that impacts their fitness for duty may be eligible for convalescent leave, in accordance with the requirements in Paragraphs 3.11.a. and 3.11.a.(1)(a)1. through 2. Health care providers treating Service members for such medical conditions, including mental health conditions associated with the sexual assault, within their scope of practice, will make convalescent leave recommendations. The recommendations must preserve the Service member's privacy and reporting option in accordance with DoDI 6310.09, and will not disclose the sexual assault in the administration of convalescent leave.

(d) Service members who seek care following a sexual assault from their primary care provider, the emergency department, or other health care provider, including receiving a sexual assault medical forensic examination, and have an identified medical condition impacting fitness for duty, in accordance with this issuance, are eligible for convalescent leave.

1. For Service members who are determined not eligible for convalescent leave, health care providers should consider recommending to the Service member's unit commander that special liberty be granted to the Service member for up to 48 hours in accordance with

Paragraph 4.3. immediately following the health care encounter, depending on the Service member's individual circumstances, to allow for immediate rest and recovery, until that Service member can have a follow-up appointment with the appropriate health care providers who may assess any ongoing needs for convalescent leave, as appropriate.

2. Health care providers recommending that the Service member's unit commander grant special liberty:

a. Must follow the policies, procedures, and forms outlined by the Defense Health Agency, the Military Departments, and the USCG, where applicable.

b. Must not disclose that the patient was seen for care associated with a sexual assault.

(2) A Service member may only be authorized convalescent leave for their own medical condition, not in connection with a medical condition of their dependent or other family member.

(3) Travel entitlements that may be associated with convalescent leave are governed by the JTR.

b. RC Maternity Leave.

(1) In accordance with Section 602 of Public Law 116-283 and procedures established by this issuance, an RC Service member who is a covered member, as described in Paragraph 3.11.d.(2), may be granted RC maternity leave following a birth event as defined in the Glossary. RC maternity leave is authorized if an MMTF healthcare provider or a provider outside the MMTF recommends such leave, in writing, to address a diagnosed medical condition (e.g., recovery from the physical and psychological effects of childbirth) and the unit commander approves the leave. The unit commander may consult with an MMTF health care provider, as necessary, to approve RC maternity leave recommendations made by a provider outside the MMTF.

(2) RC Service members who are approved for RC maternity leave must be given the opportunity to take up to six RC maternity leave periods within the first 8 weeks of the birth event. RC Service members will not be scheduled to perform inactive duty training within the first 6 weeks of the birth event. RC maternity leave that is unused at the end of the 8-week period after the birth event will be forfeited. RC maternity leave periods are taken in increments equivalent to a 4-hour inactive duty training period, of which a maximum of two such increments may be taken per day. Each such 4-hour increment will constitute an RC maternity leave period.

(3) The use of RC maternity leave is separate and distinct from inactive duty parental leave (IDPL) in Paragraph 3.11.d.(3)(a). The six RC maternity leave periods is in addition to the 12 IDPL periods. Further, the benefits described in Paragraph 3.11.d.(9) for RC Service members on IDPL apply to RC Service members who are on RC maternity leave.

c. ADPL.

(1) General.

(a) Unit commanders must balance the unit's needs with the Service member's needs to maximize the opportunity to use ADPL.

(b) Covered Service members may take full advantage of ADPL consistent with their desires and their unit's operational requirements and training workloads.

(c) ADPL applies to a Service member when any of these events occurs on or after December 27, 2022:

1. The birth of a Service member's child;
2. Adoption of a minor child by the Service member; or
3. Placement of a minor child with the Service member for adoption or long-term foster care.

(2) Covered Members.

(a) Covered members include:

1. Active Component Service members.
2. RC Service members performing active Guard and Reserve duty or full-time National Guard Duty.
3. RC Service members performing duty governed by a call or order to active service for more than 12 consecutive months.

(b) Although a unit commander may authorize an RC Service member to use ADPL after the member's active service is extended for military necessity, an RC Service member's active service may not be extended solely to permit the Service member to take ADPL.

(c) An RC Service member's active service may be extended following childbirth when a healthcare provider determines it medically necessary.

(3) ADPL for Childbirth.

Service members are authorized ADPL for the birth of their child and to care for the child.

(a) For the birth parent, 12 weeks of ADPL is authorized following a period of convalescence from childbirth. The authorization of convalescent leave for the recovery of the birth parent is pursuant to Paragraph 3.11.a.

1. Twelve weeks of ADPL is authorized during the 1-year period beginning after the child's date of birth.

2. ADPL will be taken following any period of convalescent leave. The use of convalescent leave for birth parents is separate and apart from ADPL.

3. The 12 weeks of ADPL is in addition to any period of convalescent leave for the recovery of a Service member from giving birth. ADPL will not be considered by the healthcare provider when determining the appropriate time for recommended convalescent leave following pregnancy and birth.

(b) For the non-birth parent, 12 weeks of ADPL is authorized during the 1-year period beginning after the child's date of birth. If the child is born outside of marriage, the non-birth parent's parentage of the child must be established in accordance with the criteria prescribed by the Secretary of the Military Department concerned or the Commandant of the USCG.

(4) ADPL for Adoption Placement or Adoption.

Service members, including dual military couples, are each authorized 12 weeks of ADPL during the 1-year period beginning after a minor child is placed with the Service member for adoption or the date of the minor child's adoption by the Service member.

(a) If a Service member or a dual military couple uses a surrogate and they become the legal parent(s) of a newborn child, the event will be treated as an adoption and they are authorized 12 weeks of ADPL.

(b) A Service member is not authorized an additional 12 weeks of ADPL when the adoption is finalized for a minor child already residing within the Service member's household because of the child's placement for adoption.

(5) ADPL for Long-term Foster Care Placement.

Service members, including dual military couples, are each authorized 12 weeks of ADPL during the 1-year period beginning after a minor child is placed with the Service member for long-term foster care of the placed child. A Service member is not authorized an additional 12 weeks of ADPL when the placement of a minor child with the Service member for long-term foster care:

(a) Converts to a placement for adoption with the Service member; or

(b) Is finalized as an adoption by the Service member for a minor child already residing within the Service member's household.

(6) Multiple Qualifying Events.

Multiple qualifying events are subject to these limitations:

(a) Multiple qualifying events that do not occur within the same 72-hour period will be treated as separate events for the allocation of ADPL. For example, a birth parent has two qualifying events separated by 50 days. The birth parent gave birth to a child, and then a minor child is placed with the birth parent for adoption 50 days later. In this example:

1. The birth parent's child is born on January 1 and the birth parent is released from the hospital on January 5 to begin a period of convalescent leave that ends on February 4.

2. On February 5, the birth parent begins a 12-week period (i.e., 84 days) of ADPL.

3. On February 20, the birth parent adopts a minor child. In this example, the birth parent used 15 days of ADPL between the two events and has 69 days of unused ADPL from the birth of the child.

4. The birth parent is authorized an additional 15 days for the placement of the minor child to be added to the 69 days remaining from the birth of the child.

5. Any of these days that the birth parent does not use within 1 year of the second event will be forfeited.

(b) Multiple qualifying events occurring within the same 72-hour period will be treated as a single event for the allocation of ADPL. For example, a Service member adopts two minor children within 2 days of each other. The Service member is authorized a total of 12 weeks (i.e., 84 days) of ADPL because the two adoptions are treated as a single adoption. Any ADPL the Service member does not use within 1 year of the second adoption will be forfeited.

(c) In separate qualifying events, any new ADPL must run concurrently with any pre-existing ADPL that has not expired or been used as of the date of the new event. For example, a Service member adopts a minor child on March 1 and a minor child is placed with the Service member for long-term foster care on September 1. The Service member used all 12 weeks (i.e., 84 days) of ADPL from the adoption before September 1. In this example:

1. The Service member is authorized an additional 12 weeks (i.e., 84 days) of ADPL for the placement of the minor child for long-term foster care because the Service member used all the ADPL from the adoption before the placement event on September 1.

2. If the Service member only used 42 days of ADPL from the adoption before September 1, then the Service member is only authorized an additional 42 days of ADPL for the long-term foster care placement.

3. Any days of ADPL that the Service member does not use within 1 year of the placement will be forfeited.

(7) Taking ADPL.

Service members may take ADPL in one continuous period or in increments. ADPL may be taken together with annual leave. Increments of ADPL will be taken consistent with operational requirements.

(a) Service members choosing to take ADPL in multiple increments must request such proposed leave in blocks of at least 7 days each for a maximum of 12 increments and must submit such requests within the timelines established by normal Service procedures and the unit commander. If the commander disapproves the request, the Service member may appeal the decision through their normal Service procedures.

(b) Commanders are encouraged to approve requests for incremental periods of ADPL. If the unit commander does not approve taking incremental ADPL, they must allow the Service member to take the full 12 weeks of ADPL in one continuous period.

(8) Combining Types of Leave.

Service members may take annual leave (i.e., chargeable leave) in between increments of ADPL or consecutively with ADPL. No particular order or sequence of such leave is required.

(9) Deferral of ADPL.

(a) Operationally deployed Service members must normally defer ADPL until their deployment is completed. However, in exceptional and compelling circumstances, a unit commander may approve ADPL if the unit commander determines that the unit's readiness will not be adversely impacted.

(b) Service members who are required to defer ADPL because of such deployment may be authorized an extension of the 1-year ADPL period as described in Paragraph 3.11.c.(11).

(10) Unused ADPL.

(a) Any ADPL remaining unused at the time of separation from active service will be forfeited. Such forfeiture does not apply to a Service member who qualifies for IDPL described in Paragraph 3.11.d.

(b) ADPL may not be transferred to create a shared benefit, even between a dual military couple.

(c) ADPL that is not taken before the expiration of 1 year from the date of a child's birth, minor child's adoption by the Service member, or minor child's placement with the Service member for adoption or long-term foster care will be forfeited, unless Paragraph 3.11.c.(11) applies.

(d) Any ADPL for an RC Service member that is not taken by the time they are separated from active service will be forfeited unless such forfeiture does not apply as described in Paragraph 3.11.d.(16).

1. Although a unit commander may authorize an RC Service member to use ADPL after the member's active service is extended for military necessity, the period of active service of an RC Service member may not be extended solely to permit them to take ADPL.

2. RC Service members will not be recalled to active service to use any category of leave, either singly or in combination, that this issuance authorizes.

(e) If a minor child's placement with a Service member for adoption or long-term foster care is terminated, any ADPL remaining unused on the date of such termination will be forfeited. Such forfeiture does not apply if the minor child's placement for adoption or long-term foster care is finalized as an adoption by the Service member.

(11) Extension of the 1-Year ADPL Period.

(a) A Service member is authorized to take ADPL after the 1-year period, if they would ordinarily lose unused ADPL at the end of the 1-year period because of one or more of these conditions:

1. A Service member participates in a deployment or military exercise for at least 90 consecutive days within the 1-year period concerned;

2. A Service member attends an in-residence professional military education and training course for at least 90 consecutive days within the 1-year period concerned;

3. A Service member executes PCS orders with TDY enroute to a new permanent duty station of at least 90 consecutive days that would interfere with taking ADPL within the 1-year period concerned;

4. A Service member executes routine TDY away from the permanent duty station for at least 90 days within the 1-year period concerned;

5. A Service member is hospitalized or in an in-patient status for at least 90 consecutive days within the 1-year period concerned; or

6. A Secretary of a Military Department or the Commandant of the USCG approves other extenuating circumstances on a case-by-case basis that exceed 90 consecutive days within the 1-year period concerned.

(b) For such qualifying circumstance outlined in Paragraph 3.11.c.(11)(a), the 1-year period will be extended on a day-for-day basis based on the period of such circumstance.

(12) ADPL Not Authorized for Child Born for Surrogacy or Child Placed for Adoption.

(a) A Service member who places their child for adoption or has their parental rights terminated by consent or court order, including children surrendered governed by a surrogacy agreement, is not eligible for ADPL. However, the Service member may be authorized convalescent leave in accordance with medical practice standards as described in Paragraph 3.11.a.

(b) A Service member whose spouse meets the conditions of Paragraph 3.11.c.(12)(a) is not authorized ADPL.

(13) Leave Following a Stillbirth or Miscarriage.

If a Service member experiences a stillbirth or miscarriage, the health care provider may recommend convalescent leave in accordance with medical practice standards as described in Paragraph 3.11.a. In such cases, neither the Service member nor their spouse (if a Service member) is eligible for ADPL. However, either may be authorized emergency leave as described in Paragraph 3.10.c.

(14) Leave Following Death of a Child.

ADPL eligibility, or the ADPL, if started, terminates upon the death of a child, adopted child, or child placed for adoption or long-term foster care. However, in such cases, Service members may be transitioned to bereavement leave as described in Paragraph 3.11.j., or other types of leave such as emergency leave as described in Paragraph 3.10.c.

d. IDPL.

(1) General.

(a) In accordance with Section 602 of Public Law 116-283 and Section 711 of Title 10, U.S.C., Service members who qualify for IDPL may take full advantage of the IDPL consistent with their desires and the operational requirements and training workloads of their unit.

(b) For any Service members with a qualifying event that occurs between October 1, 2024, and this issuance's effective date, they will be afforded this benefit and will have 1 year from this issuance's effective date to use the benefit. IDPL only applies to RC Service member who are covered members and who experience any of these events occurring on or after October 1, 2024:

1. The birth of the RC Service member's child;
2. Adoption of a minor child by the RC Service member; or
3. Placement of a minor child with the RC Service member for adoption or long-term foster care.

(c) IDPL will be taken in increments equivalent to a 4-hour inactive duty training period of which a maximum of two such increments may be taken per day. Each such 4-hour increment constitutes an IDPL period.

(2) Covered Members.

In accordance with Section 711 of Title 10, U.S.C., a covered member is a member of the Ready Reserve of an RC in an active status, and as of the date of a qualifying event described in Paragraph 3.11.d.(1)(b) or a birth event as defined in the Glossary:

(a) Is an RC Service member of the Selected Reserve in good standing who is entitled to receive inactive duty pay when attending or participating in periods of inactive duty training either as an RC Service member of a unit or individually.

(b) Is an RC Service member of the Individual Ready Reserve who is entitled to receive inactive duty pay when attending or participating in a sufficient number of periods of inactive duty training over the course of a year to count the year as a qualifying year of creditable service toward eligibility for a non-regular retirement.

(3) IDPL for Childbirth.

RC Service members, including dual military couples, will each be authorized IDPL for their child's birth and to care for the child.

(a) For the birth parent, 12 IDPL periods will be authorized during the 1-year period beginning after the date of the child's birth. IDPL will be taken following RC maternity leave for post-partum recovery of the birth parent, pursuant to Paragraph 3.11.b. The use of RC maternity leave is separate and distinct from IDPL. The 12 IDPL periods is in addition to RC maternity leave.

(b) For the non-birth parent, 12 IDPL periods will be authorized during the 1-year period beginning after the date of the child's birth. If the child is born outside of marriage, the non-birth parent's parentage of the child must be established in accordance with the criteria prescribed by the Military Department concerned or the USCG, as applicable.

(4) IDPL for Adoption Placement or Adoption.

RC Service members, including dual military couples, are each authorized 12 IDPL periods to care for a minor child during the 1-year period beginning after the date of their placement with the RC Service member for adoption or the date of the minor child's adoption by the RC Service member.

(a) If an RC Service member or dual military couple uses a surrogate and they become the legal parent(s) of a newborn child, the event will be treated as an adoption and is authorized 12 IDPL periods.

(b) An RC Service member is not authorized an additional 12 IDPL periods when the adoption is finalized for a minor child already residing within the RC Service member's household because of the child's placement for adoption.

(5) IDPL for Long-term Foster Care Placement.

RC Service members, including dual military couples, are each authorized 12 IDPL periods to care for a minor child during the 1-year period beginning after the date of their placement with the RC Service member for long-term foster care. An RC Service member is not authorized an additional 12 IDPL periods when the placement of a minor child with the Service member for long-term foster care is:

(a) Converted to a placement for adoption with the RC Service member; or

(b) Finalized as an adoption by the RC Service member for a minor child already residing within the RC Service member's household.

(6) Multiple Qualifying Events.

Multiple qualifying events are subject to these limitations:

(a) Multiple qualifying events that do not occur within the same 72-hour period will be treated as separate events for the allocation of IDPL. For example, a birth parent has two qualifying events separated by 45 days. The birth parent gives birth to a child, and then a minor child is placed with the birth parent for adoption 45 days later. In this example:

1. The birth parent's child is born on October 1 and the birth parent takes six IDPL periods from October 1 through November 14. On November 15, the birth parent adopts a minor child.

2. The birth parent used six IDPL periods between the two events and has six unused IDPL periods from the child's birth. The birth parent is authorized an additional six IDPL periods for the placement of the minor child to be added to the six IDPL periods remaining from birth of the child.

3. However, if all 12 IDPL periods from the birth were used before November 15, the Service member is authorized an additional 12 IDPL for the adoption of the minor child.

4. Any of these IDPL periods that the birth parent does not use within 1 year of the second event will be forfeited.

(b) Multiple qualifying events occurring within the same 72-hour period will be treated as a single event for the allocation of IDPL. For example, an RC Service member adopts two children separated by 48 hours. In this example, the Service member is authorized a total of 12 IDPL periods because the two adoptions are treated as a single adoption. Any IDPL periods that the Service member does not use within 1 year of the second adoption will be forfeited.

(c) In separate qualifying events, any new IDPL period must run concurrently with any pre-existing leave that has not expired or been used as of the date of the new event. For example, an RC Service member adopts a minor child on November 1 and another minor child is placed with the RC Service member for long-term foster care on May 1 of the following year. In this example:

1. If the RC Service member has used the authorized 12 IDPL periods from the November adoption before the May 1 long-term foster care placement, the RC Service member is authorized an additional 12 IDPL periods for the placement of the minor child for long-term foster care because the Service member used all the IDPL periods from the adoption before the placement event on May 1.

2. However, if the Service member only used six IDPL periods from the adoption before May 1, then the Service member is only authorized an additional six IDPL periods for the long-term foster care placement.

3. Any IDPL periods that the Service member does not use within 1 year of the placement will be forfeited.

(7) Taking IDPL.

RC Service members may take IDPL over 1 month, consecutive months, or non-consecutive months. IDPL used in non-consecutive months will be taken consistent with operational requirements.

(a) RC Service members who give birth may begin taking IDPL after the first 6 weeks following childbirth if the RC maternity leave periods are completed, otherwise IDPL may begin after 8 weeks following childbirth.

1. RC Service members must be allowed to take IDPL over 1 month or consecutive months and in conjunction with RC maternity leave within the first 18 weeks after childbirth, if requested. However, if the RC Service member requests to take IDPL outside of the first 18 weeks after childbirth, then the unit commander may disapprove IDPL due to operational requirements and training workloads.

2. Unit commanders will consider the RC Service member's health and whether it impacts their ability to safely return to military duty and will propose alternate dates for which the RC Service member may take IDPL.

(b) In all other circumstances, RC Service members wanting to take IDPL in non-consecutive months must request it in blocks of at least two IDPL periods. The requests must be submitted within the timeline established by normal Service procedures and the unit commander. If the unit commander disapproves the request, the RC Service member may appeal the decision through their normal Service procedures. Unit commanders are encouraged to approve requests to take IDPL in non-consecutive months. If the unit commander does not approve taking IDPL in non-consecutive months, they must allow the RC Service member to take the 12 IDPL periods in 1 month or consecutive months.

(8) Treatment of IDPL.

(a) An IDPL period taken by an RC Service member will count toward the minimum requirements for achieving a satisfactory year of participation in the Ready Reserve by the Service member in accordance with DoDI 1215.13 (i.e., it will not be treated as an excused or unexcused absence).

(b) The associated retirement point credit for each IDPL period taken by an RC Service member will count toward the minimum 50 retirement points necessary to achieve a qualifying year of creditable service for non-regular retirement in accordance with DoDI 1215.07.

(9) Benefits.

(a) Inactive Duty Pay.

An RC Service member who is not entitled to basic pay authorized in accordance with Section 204 of Title 37, U.S.C. is entitled to compensation at the rate of 1/30 of the basic pay authorized for a member of a corresponding grade and longevity (as computed for purposes of entitlement to basic pay) in accordance with Section 206(a) of Title 37, U.S.C. for each period, not to exceed six periods of RC maternity leave and 12 periods of IDPL, during which the Service member is on RC maternity leave and IDPL.

(b) Special and Incentive Pay(s) and Bonuses.

An RC Service member will be paid any special and incentive pay or bonus during each period of RC maternity leave or IDPL, not to exceed six periods for RC maternity leave and 12 periods for IDPL, that they would have otherwise been paid while attending or participating in an inactive duty training period had they not been on RC maternity leave or IDPL.

(c) Retirement Points.

An RC Service member will be credited one retirement point for computing creditable years of service for non-regular retirement for each completed period of RC maternity leave and for each completed period of IDPL. In conjunction with a qualifying event, no more than 6 retirement points may be credited for RC maternity leave, and no more than 12 retirement points may be credited for IDPL.

(d) Other Forms of Military Compensation and Benefits.

Neither RC maternity leave nor IDPL confer entitlement to any form of military pay, allowance, or other benefit not expressly provided for by Section 601 of Public Law 118-31; Section 711 of Title 10, U.S.C.; or Section 206 of Title 37, U.S.C.

(10) Unused IDPL.

(a) IDPL that is not taken before the expiration of 1 year from the date of a qualifying event will be forfeited unless such forfeiture does not apply as described in the extension of the 1-year period of IDPL in Paragraph 3.11.d.(12).

(b) Any IDPL authorized for an RC Service member that is not taken by the time they are transferred to active status in the Ready Reserve of the Individual Ready Reserve, inactive status list, or retirement reserve status will be forfeited. Although a unit commander may authorize an RC Service member to use IDPL after the Service member's Selected Reserve orders are extended for military necessity, such orders of an RC Service member may not be extended solely to permit the Service member to take IDPL.

(c) If the placement of a minor child with the RC Service member for adoption or long-term foster care is legally terminated, any IDPL remaining unused on the date of such termination will be forfeited. Such forfeiture does not apply if the replacement of the minor child for adoption or long-term foster care is finalized as an adoption by the RC Service member.

(11) Deferral of IDPL.

(a) An RC Service member who is eligible for IDPL when they enter on active duty for 12 or fewer consecutive months must defer taking IDPL until their orders terminate. An RC Service member who becomes eligible for IDPL while on such active duty orders may take IDPL after their orders terminate.

(b) An RC Service member who must defer taking IDPL or defer establishing eligibility for IDPL on account of their active duty orders as described in Paragraph 3.11.d.(12)(a) may be authorized an extension of the 1-year period of IDPL.

(12) Extension of the 1-year Period of IDPL.

(a) An RC Service member is authorized to take IDPL after the 1-year period if they would ordinarily lose unused IDPL at the end of the 1-year period because of one or more of these conditions:

1. An RC Service member is on active duty for at least 90 consecutive days within the 1-year period concerned.

2. An RC Service member's attendance at an in-residence professional military education course for at least 90 consecutive days is within the 1-year period concerned.

3. An RC Service member is hospitalized or in an in-patient status for at least 90 consecutive days within the 1-year period concerned.

4. The Secretary of a Military Department concerned or the Commandant of the USCG approves other extenuating circumstances, on a case-by-case basis, that exceed 90 consecutive days within the 1-year period concerned.

(b) For a qualifying circumstance, the 1-year period will be extended on a day-for-day basis for the period of such circumstance.

(13) IDPL Following a Stillbirth or Miscarriage.

If an RC Service member experiences a stillbirth or miscarriage, the health care provider may recommend up to six RC maternity leave periods for the recovery of the RC Service member that is the birth parent, in accordance with medical practice standards as described in Paragraph 3.11.b. and in the Glossary as defined for birth event. In such cases, neither the RC Service member nor their spouse, if an RC Service member, is eligible for IDPL. However, an RC Service member may request to reschedule or be excused from a scheduled inactive duty training period.

(14) IDPL Following Death of Child.

IDPL eligibility, or the IDPL, if started, terminates upon the death of a child, adopted child, or child placed for adoption or long-term foster care. When a birth parent requires time to recover from giving birth, the healthcare provider may recommend up to six RC maternity leave periods in accordance with medical practice standards as described in Paragraph 3.11.b. Additionally, an RC Service member may request to reschedule or be excused from a scheduled inactive duty training period.

(15) Transition of RC Service Members from ADPL to IDPL.

(a) RC Service members who have unused ADPL at the time of release or separation from active duty will receive a proportionate amount of IDPL within 12 months following the date of the qualifying event if the RC Service member:

1. Is the birth parent, non-birth parent, adoptive parent, or long-term foster parent of a minor child of the RC Service member, at the time of separation or release from active duty or within 3 months following the date of separation or release;

2. Is affiliated with the Selected Reserve of the Ready Reserve in an active status;
or

3. Is required or scheduled to attend up to 12 periods of inactive duty training either as an RC Service member of a unit or individually.

(b) The proportionate IDPL period(s) that represent the unused ADPL must be used within 1 year of the date of the qualifying event that occurred while on active duty. Any unused IDPL remaining at the end of the 1-year period will be forfeited.

(c) Qualified RC Service members will be eligible for one period of IDPL for each full week of unused ADPL. For example, an RC Service member with 6 weeks of unused ADPL as of the date of release or separation from active duty would be eligible for a maximum of 6 periods of IDPL.

(16) Transition of RC Service Members from ADPL to IDPL.

Service members on active duty who transition to the Selected Reserve of the Ready Reserve in an active status and who, while on active duty, had a qualifying event, but were not eligible for ADPL may be eligible for IDPL for a qualifying event if they are a covered member as described in Paragraph 3.11.d.(2).

(17) Federal Civilian Employees.

A Federal civilian employee who is an RC Service member, including dual-status military technicians as defined in Section 10216(a)(1) of Title 10, U.S.C., and who also meets the requirements to be considered a covered member in accordance with Paragraph 3.11.d. may, as appropriate, receive both IDPL and any form of Federal civilian parental leave.

e. NCR&R Leave Program.

(1) In accordance with Section 705a of Title 10, U.S.C., governed by the NCR&R leave program, the Secretary of the Military Department concerned or the Commandant of the USCG may grant Service members serving in designated NCR&R duty locations with a NCR&R leave (i.e., non-chargeable leave) of up to 15 days to be used in conjunction with the benefits provided by the R&R leave program (i.e., the opportunity to use annual leave and U.S. Government-funded transportation transportation). Designated NCR&R duty locations are subject to the R&R leave program policy in Paragraph 3.10.i., unless specifically addressed in Paragraph 3.11.e.

(2) The appropriate GCCDRs recommend designating and recertifying specific duty locations as NCR&R duty locations through the Joint Staff J-1 to the ASD(M&RA). The ASD(M&RA) will designate and recertify NCR&R duty locations.

(3) Designated NCR&R duty locations must be:

(a) An area that is already designated as a R&R duty location or meets the criteria for designation as a R&R duty location.

(b) In an area designated as a CZ by Executive order of the President.

(c) An area where HDP-L is authorized to be paid in accordance with Section 352(a) of Title 37, U.S.C. The GCCDR request to designate a location as an NCR&R duty location will detail the extremely difficult conditions above and beyond those associated with other deployments and assignments and will demonstrate it meets the qualifications for payment of HDP-L in accordance with DoDI 1340.26.

(d) An area where Military Services have been engaged in combat operations against a hostile force within the previous 6 months and where combat operations are expected to continue for the following 6 to 12 months (e.g., where Service members receive hostile fire pay).

(4) Service members assigned or deployed to an approved NCR&R duty location for a 270-day period, including extensions, may take either:

- (a) One NCR&R leave period of up to 15 days; or
- (b) One R&R leave period for each 12-month period.

(5) The Combatant Commanders may approve the combination of ADPL with NCR&R leave and annual leave, upon a Service member's request, if such combination is determined to be in the DoD's best interests.

(6) The applicable GCCDR will:

(a) Terminate the NCR&R leave program immediately upon a location no longer meeting the criteria contained in Paragraph 3.11.e.

(b) Notify the Joint Staff J-1 and the ASD(M&RA) of the decision to terminate the designation of NCR&R for that duty location.

f. Special Rest and Recuperation (SR&R) Leave Program.

Pursuant to Section 705 of Title 10, U.S.C., qualified Service members possessing certain specialties may be granted SR&R leave when extending duty at designated locations overseas controlled by the Overseas Tour Extension Incentive Program.

(1) To be eligible for SR&R leave, a Service member must:

(a) Be entitled to basic pay as defined in Section 204 of Title 37, U.S.C.

(b) Possess a military occupational specialty designated by the Secretary of the Military Department concerned or the Commandant of the USCG as an imbalanced or low density specialty.

(c) Have completed their overseas tour of duty at an OCONUS location that is designated as a location for SR&R leave by the Secretary of the Military Department concerned or the Commandant of the USCG and, at the end of the tour, have executed an agreement to extend that tour for at least 1 year.

(2) Service members who meet the eligibility requirements for SR&R leave may receive:

(a) Special pay for duty performed during the period of the extension at a monthly rate of up to \$80 in accordance with DoDI 1340.26 in lieu of SR&R leave;

(b) An annual lump sum bonus not to exceed \$2,000 per year in accordance with DoDI 1340.26 in lieu of SR&R leave;

(c) Up to 15 days of SR&R leave, and round-trip transportation at U.S. Government expense from the location of the extended tour of duty to the nearest CONUS port (or an alternate destination not to exceed the cost to the nearest CONUS port) and return for personnel completing an overseas duty tour of 12 months or less (transportation associated with this option is pursuant to the JTR);

(d) Up to 20 days of SR&R leave, and round-trip transportation at U.S. Government expense from the location of the extended tour of duty to the nearest CONUS port (or an alternate destination not to exceed the cost to the nearest CONUS port) and return for personnel completing an overseas duty tour longer than 12 months (transportation associated with this option is pursuant to the JTR); or

(e) No more than 30 days of SR&R leave.

(3) While the period of SR&R leave will not be charged to the Service member's leave account, there are limitations to combining such leave with annual leave, regular liberty and special liberty, administrative absence, TDY, or any other transportation entitlement authorized by the JTR. Specifically, the 15- or 20-day SR&R leave and round-trip transportation option may not be combined with any TDY or transportation entitlement authorized by the JTR that would result in the cost of the round-trip portion of the option exceeding the round-trip cost from the Service member's duty station to the nearest CONUS port.

(4) Travel time from the CONUS port or alternate destination to the SR&R leave point and return is included in the 15- or 20-day SR&R leave.

(a) This period will begin the day after the Service member arrives at the aerial port of debarkation and continue until the day before the Service member returns to the designated port.

(b) The non-chargeable leave period will continue until the day before the date of return to the designated port.

(c) Travel time to or from the CONUS port or alternate destination and the overseas location is non-chargeable and not included in the 15- or 20-day SR&R leave.

g. Graduation Leave.

In accordance with Section 702 of Title 10, U.S.C., upon graduation from the United States Military Academy, the United States Naval Academy, the United States Air Force Academy, or the United States Coast Guard Academy, the Secretary of the Military Department concerned, Commandant of the USCG, or a representative they designate may grant graduates who are appointed into any component of the Military Services graduation leave of not more than 60 days.

(1) This leave is not chargeable to the officer's leave account, and it must be used within 3 months of the officer's graduation and before the officer reports to the first duty location or port of embarkation for permanent duty OCONUS.

(2) Extensions of this graduation leave period for the convenience of the Service member will be charged to the officer's leave account.

h. Excess Leave.

In accordance with Section 502(b) of Title 37, U.S.C., excess leave is a no-pay status. Therefore, entitlement to pay and allowances and accrued leave stops on the first day of excess leave. Excess leave may be authorized in emergencies if the aggregate of all leave granted (i.e., accrued + advance + excess) does not exceed 60 days and that advance leave is used before the excess leave. Consideration for humanitarian reassignment should be given in those cases where emergencies require the absence of the Service member for more than 60 days.

(1) In accordance with Section 701(a) of Title 10, U.S.C., when excess leave is authorized together with accrued leave, no leave may be accrued during a period of excess leave.

(2) In accordance with Section 706 of Title 10, U.S.C., when a unit commander at the O-5 level or above directs appellate leave, this leave is considered involuntary excess leave. Service members may opt to use accrued leave or a combination of accrued leave and payment of remaining accrued leave before entering excess leave status.

(3) Indefinite periods of excess leave may be granted to Service members awaiting appellate review of a court-martial sentence to a dismissal or punitive discharge and to personnel awaiting an administrative discharge in accordance with Paragraph 3.12.b.

(4) Service members pending discharge may request excess leave while awaiting completion of administrative discharge proceedings.

(5) As an exception to the 60-day limitation, excess leave may be granted to Service members completing educational programs leading to a professional degree or associated licensing examinations in connection with an officer procurement program. However, participants will not be required to use accrued leave before being placed in an excess leave status, and accrued leave will be retained until duty in a pay status is resumed.

(6) If requested, unit commanders may grant Service members excess leave for less than 30 days before being discharged or released from active service through an involuntary separation under honorable conditions, unless doing so would impede mission requirements.

(7) Other requests for periods of leave involving excess leave that extend beyond the 60-day limitation may be granted at the Military Department or Service headquarters level, at the discretion of the Secretary of the Military Department concerned or the Commandant of the USCG.

i. Emergency Leave of Absence.

In accordance with Section 709 of Title 10, U.S.C., the Secretary of the Military Department concerned or the Commandant of the USCG may grant a Service member a non-chargeable emergency leave of absence of up to 14 days for a qualifying emergency, with these limitations:

(1) The qualifying emergency is verified based on information or opinion from a source, in addition to the Service member, that the Secretary of the Military Department concerned or

the Commandant of the USCG considers to be objective and reliable. The qualifying emergency must be related to:

- (a) A medical condition of the Service members' immediate family; or
 - (b) Any other hardship that the Secretary of the Military Department concerned or the Commandant of the USCG determines is appropriate.
- (2) Such emergency leave of absence may:
- (a) Be granted only once during any Service member's entire career.
 - (b) Be granted only to prevent the Service member from entering advanced leave status or excess leave status that could result in recoupment of pay and allowance.
 - (c) Not exceed 14 days.

j. Bereavement Leave.

(1) General.

In accordance with Section 701(l) of Title 10, U.S.C., a Service member whose spouse or child dies will be allowed up to 14 days of leave to be used in connection with such death.

(2) Covered Members.

- (a) Covered members include:
 - 1. Active Component Service members.
 - 2. RC Service members performing active Guard and Reserve duty or full-time National Guard Duty.
 - 3. RC Service members performing duty governed by a call or order to active service for more than 12 months consecutively.
- (b) An RC Service member may not be extended on active service solely to permit the RC Service member to take bereavement leave.

(3) Authority to Grant Bereavement Leave.

Unit commanders may grant bereavement leave. Swift and sensitive action on bereavement leave requests will be made to avoid additional stress on the Service member and their family.

(4) Eligibility.

- (a) A Service member whose spouse or child dies and who has fewer than 30 days of accrued leave on the date of such death is eligible for bereavement leave.

(b) A Service member whose spouse or child dies and who has 30 or more days of accrued leave on the date of such death is eligible for bereavement leave once their accrued leave balance is fewer than 30 days.

(5) Allocation of Bereavement Leave.

A Service member may be authorized up to 14 consecutive days of bereavement leave, based on their request, to be used in connection with the death of a spouse or child.

(6) Period of Bereavement.

The period of bereavement begins on the date of death of a Service member's spouse or child and ends no later than 14 consecutive days after the deceased person's funeral, burial, or memorial service, whichever occurs last. The Secretary of the Military Department concerned or Commandant of the USCG may extend a Service member's period of bereavement due to operational requirements or other extenuating circumstances.

(7) Leave in Connection with the Death of a Spouse or Child.

Bereavement leave may be authorized in combination with chargeable leave (e.g., emergency leave, annual leave, and advance leave) and other types of non-chargeable leave (e.g., convalescent leave and emergency leave of absence).

(a) Service members may take up to 14 days of leave in connection with the death of a spouse or child, consistent with operational requirements.

(b) Eligible Service members may be authorized up to 14 days of bereavement leave, to be taken in one increment of consecutive calendar days, during the period of bereavement described in Paragraph 3.11.j.(6). A Service member who initially requests and is authorized less than 14 consecutive days of bereavement leave may be authorized to extend the period of bereavement leave up to 14 consecutive days, so long as all the bereavement leave is taken in one increment.

(c) When multiple types of leave are authorized, bereavement leave does not need to be taken before using other types of leave, but, unlike other types of leave, bereavement leave must be used during the period of bereavement described in Paragraph 3.11.j.(6).

(d) During the period of bereavement, a Service member with 30 or more days of accrued annual leave who is authorized to take chargeable leave (e.g., emergency leave) will be charged leave until the bereavement leave may be authorized to begin.

(8) Limitations.

(a) Absent an exception due to operational requirements or other extenuating circumstances, a Service member will not be authorized bereavement leave for a period that extends past the end of the period of bereavement described in Paragraph 3.11.j.(6).

(b) A Service member will not be authorized bereavement leave in connection with the death of a person who is not their spouse or child, but may be authorized other forms of leave, as appropriate. For purpose of Paragraph 3.11.j., a child of the Service member is defined as:

1. A biological, adopted, step, or foster son or daughter of the Service member;
2. A person who is the Service member's legal ward when that person was a minor or otherwise required a legal guardian;
3. A person for whom the Service member stands *in loco parentis* (day-to-day responsibility for the care and financial support of a child) or stood *in loco parentis* when the person was a minor or otherwise required someone to stand *in loco parentis*; or
4. A son or daughter, as described in the Paragraph 3.11.j.(8)(b)1., of the Service member's spouse.

(c) A Service member is not authorized bereavement leave in connection with a stillbirth or miscarriage, but may be authorized other forms of leave, as appropriate.

(d) A Service member whose misconduct resulted in the death of their spouse or child is not authorized bereavement leave.

(9) Validation of Spouse or Child's Death.

Unit commanders may consider a Service member's self-certification of the death of their spouse or child to approve a request for bereavement leave. Unit commanders will require the Service member to provide administratively acceptable documentation within 30 calendar days after returning to duty. If the Service member fails to provide the required documentation, the unit commander will direct that their accrued leave account be reduced by the number of days of bereavement leave taken.

k. Educational Leave of Absence.

An educational leave of absence may be granted for Service members participating in a program of education in accordance with Section 708 of Title 10, U.S.C. Eligible Service members may be authorized an educational leave of absence for up to 2 years to attend a program of education or up to 3 years to attend a program in the healthcare profession. The Secretary of the Military Department or the Commandant of the USCG is authorized to approve such absence when it is in the DoD's best interest. Such authority may be delegated to no lower than the Military Service headquarters level.

(1) An "eligible Service member" is any active duty Service member who:

(a) Is eligible for basic educational assistance in accordance with Chapter 30 of Title 38, U.S.C.

(b) Has completed at least one term of enlistment and has reenlisted (enlisted Service members) or has completed their initial period of obligated military service on active duty (officers).

(c) If stationed OCONUS, is within 12 months of completing their full overseas tour of duty. The full overseas tour of duty must be completed before beginning any authorized educational leave of absence. Service members not stationed in the United States or one of its territories or possessions must complete a PCS back to a unit in the United States or one of its territories or possessions before beginning any authorized educational leave of absence.

(2) Eligible Service members may not be granted an educational leave of absence unless they agree, in writing, that their current enlistment (enlisted Service members) or active duty obligation (officers) will be extended for a period of 2 months for each month of educational leave of absence after completing or terminating the education program. An educational leave of absence may not be granted until the Service member has completed any enlistment or reenlistment extension, or any period of obligated military service, incurred due to any previous educational leave of absence pursuant to Section 708 of Title 10, U.S.C.

(3) Service members on an educational leave of absence will, for administrative and accountability purposes, remain assigned to the unit to which they were assigned before approval of their educational leave of absence. Even though the Service member's educational leave of absence is considered non-chargeable leave, they will be charged leave during scheduled school breaks unless they return to duty with the unit of assignment during the break. Leave carried over at the end of the fiscal year exceeding 60 days will not be authorized other than as authorized in Paragraph 3.8.

(4) While on an educational leave of absence, Service members will be entitled to basic pay for their applicable pay grade and to accrue leave. However, they will not receive basic housing or subsistence allowance or any other pay and allowance or assistance-in-kind to which they would otherwise be entitled.

(a) Service members authorized an educational leave of absence will not, because of their decision to pursue an education program, be eligible for any entitlements governed by the JTR.

(b) The period a Service member is on an educational leave of absence will count toward computing their basic pay, eligibility for retired pay, and time-in-grade for promotion purposes. This period may not count toward the completion of the term of enlistment for enlisted Service members or for entitlement to supplemental educational assistance in accordance with Section 3021 of Title 38, U.S.C.

(5) The Secretary of the Military Department concerned or the Commandant of the USCG may terminate an educational leave of absence:

(a) In time of war or national emergency as declared by the President or Congress pursuant to Section 708 of Title 10, U.S.C., if such authority is made available by the President in the declaration of a national emergency, or by one or more contemporaneous or subsequent

Executive orders published in the Federal Register and transmitted to the Congress, in accordance with Section 1631 of Title 50, U.S.C.

(b) When they determine the Service member is not satisfactorily pursuing the program of education for which the absence was granted.

3.12. CHARGEABLE AND NON-CHARGEABLE LEAVE COMBINATIONS.

Certain types of leave may begin as chargeable and become non-chargeable after a period of time.

a. Leave Awaiting Orders as a Result of Disability Proceedings.

In accordance with Section 502(a) of Title 37, U.S.C., when ordered home or to another designated location in a PCS status to await further orders and disposition due to a disability separation, Service members will be charged leave for each day in an awaiting orders status. An authorized absence in an awaiting orders status that exceeds maximum accrued leave is not chargeable as leave.

b. Appellate Leave.

(1) In accordance with Section 706 of Title 10, U.S.C. and regulations prescribed by the Secretary of the Military Department concerned or the Commandant of the USCG, Service members who have been sentenced by court-martial to be dismissed or to receive a punitive discharge may be required to take excess leave (i.e., leave of absence without pay) after all annual leave is exhausted, pending completion of the appellate review.

(2) Authority to direct such leave rests with the officer exercising court-martial jurisdiction over the Service member. The authority that approved this leave may terminate it at any time by written notice.

(3) Service members may be required to begin their leave at any time on or after the date on which the sentence is approved. Such leave may be continued until a time when the final review is completed and the sentence is executed.

(4) When confinement is included as part of the approved sentence, the period of confinement must have been served or deferred before the beginning of the leave.

(5) Service members required to take such leave and that have accrued leave may elect:

(a) Receipt of pay and allowances during the period of accrued leave, with leave beyond that which was accrued charged as excess leave;

(b) Payment for accrued leave to the Service member's credit on the day before the date leave begins, with the total period of required leave charged as excess leave; or

(c) A combination of receipt of pay and allowances and accrued leave payment.

(6) In accordance with Section 707 of Title 10, U.S.C., if the Service member's court-martial sentence is disapproved or set aside, they will receive pay and allowances for any period of required excess leave, except any day of accrued leave for which they elected payment before departing on leave. This requirement will not apply if a rehearing or new court-martial is ordered that results in a dismissal or a dishonorable or bad conduct discharge.

(7) In accordance with Section 706 of Title 10, U.S.C., Service members sentenced by court-martial to a dismissal or punitive discharge, but whose sentence has not yet been approved by the court-martial convening authority, may submit a written request for voluntary leave to the commander exercising court-martial authority.

(a) The commander exercising court-martial authority may approve the request if, in their opinion, it would serve the DoD's best interest.

(b) A Service member who takes such leave and has accrued leave to their credit will use the accrued leave first. After the accrued leave is used, the Service member will enter excess leave status.

(c) Before such leave is approved, all adjudged confinements will have been served, commuted, remitted, suspended, or deferred.

(d) Before the court-martial sentence is approved by the appropriate authority, voluntary leave will be terminated upon the Service member's written request or by the Service member's commanding officer.

(e) Upon approval of the court-martial sentence by the officer exercising court-martial jurisdiction, the Service member's leave status will be changed from voluntary to required.

(8) Service members awaiting completion of administrative discharge proceedings may be granted leave. Such Service members will use their accrued leave until exhausted, at which time they will enter excess leave status.

c. Leave Pending Review of Recommendation for Removal by a Board of Inquiry.

In accordance with Sections 706 and 1182(c)(2) of Title 10, U.S.C., when a board of inquiry recommends that an officer not be retained on active duty, that officer may be required to take leave pending the completion of their case.

(1) The officer may be required to begin such leave any time after receiving the board of inquiry's report, including the board's recommendation for removal from active duty, and the expiration of any period allowed for submission by the officer of a rebuttal to that report.

(2) The leave may be continued until the date on which action by the Secretary of the Military Department concerned or the Commandant of the USCG is completed, or the leave may be terminated at any earlier time.

(3) In accordance with Section 707a of Title 10, U.S.C., an officer who must take such leave and, as a result, incurs excess leave and whose recommendation for removal from active duty in a report of a board of inquiry is not approved by the Secretary of the Military Department concerned or the Commandant of the USCG will be paid for the period of leave charged as excess leave.

SECTION 4: AUTHORIZED ABSENCES OTHER THAN LEAVE

4.1. FEDERAL HOLIDAYS.

- a. Federal holidays will be observed, except when prevented by military operations or military necessity.
- b. When such holidays fall on a Saturday, the preceding Friday will be considered a holiday. When such holidays fall on a Sunday, the following Monday will be considered a holiday.
- c. Federal holidays will be charged as leave if they fall within the effective dates of leave.

4.2. REGULAR LIBERTY.

- a. Regular liberty periods will not exceed 3 days and will normally be from the end of normal duty hours on the first day to the beginning of normal duty hours on the following work day.
 - (1) On 2-day weekends, regular liberty will extend from the end of normal duty hours on Friday until the beginning of normal duty hours the following Monday.
 - (2) On 3-day Federal holiday weekends, regular liberty will include Saturday, Sunday, and the Federal holiday (Monday or Friday).
 - (3) A regular liberty may only be 4 days when a Federal holiday falls on a Thursday (or Tuesday) and the President designates the accompanying Friday (or Monday) as a Federal holiday, as well.
- b. Unit commanders will establish a liberty recall policy that meets organizational readiness requirements.
- c. For Service members on shift work, equivalent regular liberty schedules will be arranged, even though the days of the week may vary.
 - (1) When operational circumstances permit, compensatory time off as regular liberty should normally be granted following duty performed during Federal holidays.
 - (2) Except for unusual cases, such time off should be granted on the first duty day following the Federal holiday. However, if the holiday falls on a weekend and either Friday or Monday is designated as the non-duty day, compensatory time off should be applied to both the Federal holiday and the observed day, on a day-for-day basis.
- d. Regular liberty periods will not be used in succession immediately before or after return to duty (i.e., there must be a duty day between liberty periods).

e. Regular liberty, at no cost to the U.S. Government, may be authorized at the beginning or end of a TDY period.

f. When Service members request an extension of authorized regular liberty exceeding 3 days (e.g., regular liberty and extension combined), the portion exceeding the regular liberty will be charged to the Service member's leave account.

4.3. SPECIAL LIBERTY.

a. Special liberty may not be used in combination with regular liberty, Federal holidays, other off-duty periods, or in any other circumstance where the combined periods of continuous absence would exceed 4 days. Special liberty periods exceeding 2 days may only be granted at the unit commander's discretion for special occasions or in special circumstances, such as:

(1) Compensation for significant periods of unusually extensive working hours; long or difficult deployment from home station or port; duty in an isolated location where normal liberty is inappropriate; or to Service members residing or working onboard ships in overhaul away from their homeport.

(2) As special recognition for exceptional performance, such as Soldier, Sailor, Airman, Marine, or Guardian of the Month or Year.

b. Special liberty may be taken in conjunction with annual leave without a duty day between the liberty and leave periods.

(1) Special liberty may be taken in accordance with the local commander's guidance and policies for special liberty but requires a unit commander's memorandum authorizing the special liberty.

(2) The Service member must be physically present at the home station or port when departing and returning from annual leave. If the Service member wishes to leave the home station or port during the special liberty period and not return before the beginning of the leave period, then the entire leave and liberty period will be charged as leave.

c. When Service members request an extension of an authorized period of special liberty that exceeds 4 days (i.e., original authorization and extension combined) because of unforeseen emergency circumstances, the extension beyond the 4 days will be charged to the Service member's leave account.

4.4. ADMINISTRATIVE ABSENCE.

a. Administrative absences are authorized for specific circumstances as explained in Paragraph 4.4.b. They may include permissive TDY travel to attend or participate in official activities to the benefit of the DoD's mission. Unit commanders may grant an administrative absence for Service members on active duty orders for at least 30 days, regardless of their DoD Component, subject to meeting the specific terms, conditions, and qualifications of the specific

absence. If it does not, the absence will be subject to normal leave and liberty procedures. Administrative absences that exceed 30 days will be controlled at the Military Service headquarters level.

b. Appropriate uses for administrative absence include:

(1) Professional Meetings.

Attending professional meetings sponsored by recognized non-Federal technical, scientific, or professional (e.g., medical, legal, and religious) societies and organizations. The meetings must be directly related to the Service member's professional background or primary military duties and clearly enhance their value to the Military Service concerned.

(2) Transition Assistance Program.

Attending DoD-sponsored employment assistance events governed by the Transition Assistance Program in accordance with DoDI 1332.35 when the Service member will separate or retire within 365 days.

(3) DoD Credit Union Board Meetings.

Attending meetings as a board of directors member of a DoD credit union. Meetings of associations, leagues, or councils formed by DoD credit unions must be directly related to DoD credit union programs.

(4) Competitive Sporting Events.

Participating in competitive sporting events. Essential support of participants in competitive sporting events, Service- or DoD-sponsored sports events, or other sports events approved by the Service headquarters concerned.

(5) Legal Witness or Jury Duty.

Performing jury duty or responding to a subpoena, summons, or a request instead of process, as a witness at a State or Federal criminal investigative proceeding or criminal prosecution. The criminal proceeding or prosecution must be of substantial public interest, such as major crimes, where the Service member would be an essential witness.

(6) Professional Development.

Participating in military or professional programs that enhance the Service member's value to the Military Service concerned or their understanding of the Military Service concerned and their relationship to it, as approved by the respective Service headquarters and where funded travel is inappropriate.

(7) House Hunting.

House hunting incident to a PCS when military privatized housing or U.S. Government quarters are not immediately available or, if available, are not required to be occupied at the gaining installation. The administrative absence authorized may not exceed 10 days.

(8) Retirement Presiding Official.

Participating in an official military retirement ceremony as the presiding official. The administrative absence authorized may not exceed 3 days and is limited to one presiding official per retirement ceremony.

(9) Terminal Leave of Absence.

Participating in pre-separation job search and house hunting activities to facilitate a retiring Service member's relocation or transition to civilian life. This administrative absence of no more than 30 days may be granted to a Service member who is retiring from active duty, including medical retirements, and a recalled RC Service member who receives approval for retirement based upon at least 20 years of accumulated active duty service.

(10) Involuntary Separation Leave of Absence.

Carrying out necessary relocation activities such as job search or residence search activities by a Service member, including a recalled RC Service member, who is being involuntarily separated or involuntarily released from active duty, under honorable conditions. In accordance with Section 1149 of Title 10, U.S.C., an administrative absence must be granted to such Service member as needed to facilitate carrying out relocation activities, unless doing so would interfere with mission requirements. The absence is restricted to:

(a) No more than 30 days of administrative absence granted to Service members stationed OCONUS.

(b) No more than 20 days of administrative absence granted to Service members stationed within CONUS.

(c) No more than 30 days of administrative absence granted to Service members who were residents before entering active duty and continue to be residents of States, possessions, or territories of the United States located OCONUS, or of foreign countries when stationed at a location other than that of their residence. Service members may be authorized an administrative absence only for house and job hunting to the State, possession, territory, or country of their domicile.

(11) Voluntary Separation Through Force Shaping or Reduction Program.

Participating in pre-separation job search and house hunting activities to facilitate relocation or transition of the Service member to civilian life. An administrative absence of no more than 30 days may be granted to Service members voluntarily separating through a Military Department force reduction or force shaping program. Service members voluntarily separating

at the end of a normal term of service (i.e., expiration term of service or end of active duty obligated service) or involuntarily separating under conditions other than honorable are not eligible for this administrative absence.

(12) SkillBridge Program.

Participating in a SkillBridge program. An administrative absence of no more than 180 days may be granted to facilitate a Service member's transition into civilian sector jobs and careers through involvement with an authorized DoD SkillBridge provider and in accordance with procedures of the Military Department and Service headquarters concerned.

(13) National or World Scout Jamboree.

Participating in the National or World Scout Jamboree, in accordance with Section 2554 of Title 10, U.S.C. An administrative absence of no more than 10 days may be granted to provide personnel services or logistical support.

(14) Recruiting Assistance.

An administrative absence of no more than 14 days may be granted to Service members who support recruiting. Recruiting assistance absence may be authorized in conjunction with annual leave.

(15) Proceed Time.

Attending to the administrative details involved in matters appropriate in certain PCS circumstances as defined in the Glossary.

(a) Service members entitled to transportation of dependents and/or household goods may be authorized 4 days of proceed time when:

1. Being reassigned to or from an unaccompanied overseas tour, as defined in DoDI 1315.18.

2. Their ship of assignment is changing homeport.

(b) Proceed time may only be authorized to eligible Service members when they actually relocate their dependents and/or household goods due to the conditions outlined in Paragraph 4.4.b.(15)(a). Proceed time will not be granted:

1. Incident to the Service member's first permanent duty station.

2. When the reassignment is between two stations located in close proximity or between two ships that have the same homeport.

3. Incident to separation, release from active duty, or retirement.

4. When orders require reporting within 4 days of departure from the last duty station.

(c) Proceed time is not intended to serve the needs of military check-out and check-in procedures with military personnel offices, security and - offices, billeting offices, and public quarters clearance and the like, which are military administrative requirements to be provided for during normal working hours.

(16) Non-covered Assisted Reproductive Technology.

Service members may request an administrative absence from their normal duty station without being charged leave to access non-covered assisted reproductive technology (ART).

(a) Active duty Service members, including Reserve or National Guard members when on active duty orders for 30 or more consecutive days (referred to as “eligible Service members” in Paragraph 4.4.b.(16)), may be granted an administrative absence for a period of up to 21 days per request to receive, or to accompany a dual military spouse or a dependent who receives, non-covered ART as defined in the Glossary. The period of absence will be limited to the minimum number of days essential to receive the required care and travel needed to access the care by the most expeditious means of transportation practicable.

(b) Eligible Service members should be granted an administrative absence when they identify a need for non-covered ART. Requests for administrative absence should be given all due consideration and should be granted to the greatest extent practicable unless, in the unit commander’s judgment, the Service member’s absence would impair proper execution of the military mission. Eligible Service members may need to disclose a minimum amount of health care information that is necessary for unit commanders to authorize the absence.

1. Unit commanders must act promptly and with appropriate discretion when considering a Service member’s request for an administrative absence to obtain non-covered ART. To the greatest extent practical, delays in granting an administrative absence should not result in an eligible Service member being unable to access the non-covered ART that served as the basis for the administrative absence request.

2. In considering the mission impact of a Service member’s request for an administrative absence for non-covered ART, where recurring care may be necessary over a period of time, unit commanders should coordinate with the eligible Service member to balance operational requirements and the health care schedule.

(c) Unit commanders and MMTF directors may also grant a Service member convalescent leave as described in Paragraph 3.11.a. following receipt of non-covered ART based on a recommendation from a MMTF healthcare provider or a non-DoD healthcare provider from whom the Service member is receiving care.

(d) Eligible Service members must not be granted an administrative absence if they intend to sell, offer for sale, or receive proceeds from a sale resulting from an non-covered ART procedure while on, or in connection with taking, such absence.

(e) Unit commanders will adhere to these guidelines:

1. Commanders must meet operational requirements and protect the health and safety of those in their care. Commanders are expected to display objectivity, compassion, and discretion when addressing all healthcare matters.

2. Consistent with existing law and DoD policy, commanders will protect the privacy of protected health information they receive in accordance with Paragraph 4.4.b.(16), as they should with any other protected health information. Such healthcare information must be restricted to personnel with a specific need to know; this is, access to the information must be necessary for the conduct of their official duties. Personnel must also be accountable for safeguarding this healthcare information consistent with existing law and DoD policy.

SECTION 5: ADMINISTRATIVE REQUIREMENTS

5.1. ADMINISTRATIVE REQUIREMENTS.

a. Except when otherwise authorized in this issuance, leave will be calculated based on the actual date of departure on leave status and the actual date of return from leave. This will be consistent with the requirements regarding combination of leave and special liberty.

b. The day a Service member departs on, and returns from, leave must not be charged as leave if they are at their place of work (e.g., “on board,” “for duty”) for the majority of the normal working hours of a workday. Otherwise, it must be charged as leave.

(1) For leave starting on a non-workday, the day of departure will be charged as a day of leave.

(2) For leave ending on a non-workday, the day of return will not be charged as a day of leave.

c. The Secretary of the Military Department concerned and the Commandant of the USCG will establish administrative and leave accounting procedures to ensure all authorized periods of absence involving periods charged as leave are accurately charged to the Service member’s leave account.

d. When Service members on authorized leave are recalled to duty due to military necessity, the leave will not be charged to their leave account when the period between departure on leave and the Service member’s receipt of the recall to duty is 3 days or less.

(1) The remaining time of absence will be considered travel time unless the unit commander determines the Service member’s absence is excessive; then the entire absence will be charged as leave.

(2) If the Service member is entitled to travel reimbursement, orders authorizing travel should be issued in accordance with the JTR.

e. In accordance with Section 709a of Title 10, U.S.C., when a Service member’s scheduled leave is canceled within 48 hours of the leave commencing to permit the Service member to participate in a contingency operation, the Secretary of the Military Department concerned or the Commandant of the USCG may reimburse the Service member’s travel and related expenses incurred due to ticketing or contractual requirements.

f. Service members on chargeable leave who are hospitalized or placed on a “sick-in-quarters” status will not be charged leave for that period since they are medically unfit for duty. Chargeable leave will terminate the day the Service member is hospitalized and recommence the day following hospitalization or sick-in-quarters.

g. In accordance with Section 701(f) of Title 10, U.S.C., a Service member who is in a missing status, as defined by Section 551(2) of Title 37, U.S.C., accumulates leave regardless of the 60- and 90-day limitations.

(1) A Service member who dies while in a missing status will continue to earn leave through the date the Secretary of the Military Department concerned or the Commandant of the USCG receives evidence of the death or that the death is prescribed or determined in accordance with Section 555 of Title 37, U.S.C.

(2) In accordance with Section 701(f) of Title 10, U.S.C., a Service member may earn up to 150 days of leave while in a missing status in addition to any previous leave earned. However, if a Service member's death occurs on a date when they would have accrued more than 150 days, settlement will be made for the number of days accrued to the actual date of death.

(3) Leave accumulated by a Service member while in a missing status will be accounted for separately and will be paid for in accordance with Section 501(h) of Title 37, U.S.C.

h. A Service member who dies while on leave will not be charged for leave on the day death occurs and any day following their death.

i. Whenever requested and operationally feasible, accrued leave will be granted together with TDY. Both regular and special liberty may not be used to extend TDY periods. Advance leave may also be approved if the criteria in Paragraph 3.10.b. is met.

5.2. ABSENCE OVER LEAVE OR LIBERTY.

a. In accordance with Section 503(a)(1) of Title 37, U.S.C., Service members absent from their places of duty without permission or absent beyond their authorized leave periods may be classified to be "absent without leave," "absent over leave," or "absent with leave," whichever applies, as defined in the Glossary.

(1) If the unit commander decides such absence was avoidable, the absence will be classified as "absent without leave" or "absent over leave," whichever applies, the Service member's leave account will not be charged, and the Service member forfeits pay and allowances during the part of the Service member's absence that is more than the number of days' of leave authorized.

(2) If the unit commander decides such absence was unavoidable, the absence will be classified as "absent with leave," the period of the absence will be charged to the Service member's leave account, and the Service member is entitled to full pay and allowances for the period of that absence except when the period of leave is excess leave.

b. In accordance with Section 503(a)(1) of Title 37, U.S.C., Service members absent from their places of duty for a period that is longer than the liberty authorized, may be classified to be "absent without leave," "absent with leave," or "liberty," whichever applies.

(1) If the unit commander decides the absence was avoidable, the absence will be classified as “absent without leave,” the Service member’s leave account will not be charged, and the Service member forfeits pay and allowances during the part of their absence that is more than the number of days’ liberty authorized.

(2) If the unit commander decides the absence was unavoidable, the absence will be classified as “absent with leave,” when the liberty authorized plus the unavoidable absence exceeds 3 days. In such case, the Service member’s leave account will be charged for the duration of the unavoidable absence. However, when the entire period is fewer than 4 days, the unavoidable absence will be classified as “liberty.” In either case, the Service member is entitled to full pay and allowances for the entire period.

c. When a Service member is “absent without leave” or “absent over leave” because they are convicted of a crime by civilian authorities in a foreign country and confined in that country by civilian authorities, or by military authorities for civilian authorities:

(1) In accordance with Section 503(a)(2)(A) and 503(a)(2)(B) of Title 37, U.S.C., the Secretary of Defense may determine to pay the full pay and allowances for the period of that absence even if the absence is not excused as unavoidable; this authority is **not** delegable.

(2) In accordance with Section 503(a)(2)(C) of Title 37, U.S.C., not later than 30 days after the Secretary of Defense determines to disburse the full pay or allowances pursuant to Section 503(a)(2)(A) of Title 37, U.S.C., the USD(P&R) must submit a report regarding such determination to the congressional defense committees.

5.3. EXCEPTIONS OR WAIVERS.

Only the Secretary of Defense, the Deputy Secretary of Defense, the USD(P&R), the Deputy USD(P&R), or the ASD(M&RA) may, as appropriate, approve exceptions or waivers to the provisions of this issuance that are not required by applicable laws. DoD Components may submit requests for such exceptions or waivers to the ASD(M&RA) for review and further action.

SECTION 6: FEML PROGRAM DATA SHEET

This data sheet will be used to ensure the minimum required information is provided when requesting a location be designated an FEML duty location. Combatant Commanders will evaluate each item on this list and are encouraged to add additional comments and factors that bear on the proposed request. This data sheet does not constitute a request for designation. It provides background data to support FEML designation or changes. Unless otherwise indicated, the information requested on the data sheet applies to both civilian community and installation support services and infrastructure.

a. Installation.

Identify the installation's location and the date the data sheet is prepared.

b. Tour Lengths.

Indicate the current tour lengths, both the accompanied-by-dependents and unaccompanied tour lengths for the proposed FEML duty location.

c. Host Command.

Indicate the installation's host command.

d. Affected Population.

By Military Service, list the number of assigned officers, enlisted Service members, and command-sponsored dependents at the proposed FEML duty location.

e. Geography.

List the:

- (1) Nearest community (i.e., town, population, distance, and driving time).
- (2) Nearest community with a population of 10,000 or more (i.e., town, population, distance, and driving time).

f. Isolation.

If isolation is a contributing factor, explain.

g. Climate.

- (1) List the:
 - (a) Temperature (i.e., highest, lowest, and annual average).
 - (b) Humidity (i.e., highest, lowest, and annual average).

(c) Precipitation (i.e., annual average of snow and rain).

(2) If climate is a contributing factor, explain.

h. Self-supporting.

If the proposed FEML duty location is not self-supporting, identify the support base (i.e., base, distance, and driving time).

i. U.S. Installations.

Identify the nearest major U.S. installation (i.e., base, distance, and driving time).

j. Medical Support.

Describe the medical and dental support and facilities at the proposed FEML duty location both on and off base and their availability to Service members and their dependents.

k. Commissary Support.

Indicate whether there is an adequate DoD commissary at this duty location. If not, list the location of the nearest adequate DoD commissary.

l. Host Nation Food Market.

Describe the:

- (1) Availability.
- (2) Cost.
- (3) Sanitation.

m. Exchange Support.

Indicate whether there is an adequate Service exchange (e.g., Army and Air Force Exchange Service, Marine Corps Exchange, Coast Guard Exchange, or Navy Exchange) at the proposed FEML duty location. If not, list the location of the nearest adequate Service exchange (i.e., location, distance, and travel time).

n. Local Civilian Stores Providing Exchange-type Goods and Services.

Describe the:

- (1) Availability.
- (2) Cost of such goods and services.

o. Banking Services.

Comment on the availability of retail banking facilities and services at the proposed FEML duty location.

p. Education Support.

Comment on the:

(1) Availability and accreditation status of dependent schools including location and commuting time.

(2) Off-duty education available to Service members and dependents.

(3) Availability of library facilities.

q. Religious Support.

Comment on available religious facilities and support.

r. Recreational Support.

Comment on available recreational support and facilities.

s. Mail Support.

Indicate the average mail delivery time to and from the United States (i.e., air mail and surface mail).

t. Social Life.

Describe the nature and extent of:

(1) Any restriction on social life of Service members (e.g., single and married, accompanied and unaccompanied, and male and female).

(2) The local culture, including customs, language, attitude of local population, government restrictions, and political climate.

u. Transportation Support.

(1) Describe the host nation transportation systems.

(2) Comment on the advisability and necessity of having a privately owned vehicle.

(3) Describe the international air support between the proposed FEML duty location and destination.

(4) Indicate if military airlift support is available. If so, provide a schedule of daily routes.

(5) List the distance and travel time between the proposed FEML duty location and the nearest international terminal or U.S. military installation where air support is available.

(6) List the costs for civilian transportation between the proposed FEML duty location and destination. Provide a flight itinerary indicating costs from the proposed FEML duty location to the relief destination (round-trip).

(7) Explain any unique difficulties.

v. Personnel Security.

(1) Explain whether security standards require very limited travel outside a protected compound or living area.

(2) Specify whether local travel of Service members is performed in bulletproof vehicles.

(3) Indicate whether the duty location is a dependent-restricted location.

(4) Show whether school-age dependents are restricted from travelling to the proposed FEML duty location.

(5) Describe any significant cultural or religious belief systems, recognized by the host nation government, that severely limit Service members' activities and movements.

w. Other.

(1) Show whether the Department of State has established a post hardship differential for the proposed FEML duty location and provide the current differential rate for location, if any.

(2) Specify whether the proposed FEML duty location is currently designated as an imminent danger pay area.

(3) Indicate whether the proposed FEML duty location is currently designated as an HDP-L area and provide the current amount payable to Service members assigned to the location, if any.

GLOSSARY

G.1. ACRONYMS.

ACRONYM	MEANING
ADPL	active duty parental leave
ART	assisted reproductive technology
ASD(M&RA)	Assistant Secretary of Defense for Manpower and Reserve Affairs
CONUS	continental United States
COT	consecutive overseas tour
CZ	combat zone
CZTE	combat zone tax exclusion
DASD(MPP)	Deputy Assistant Secretary of Defense for Military Personnel Policy
DoDI	DoD instruction
EML	environmental morale leave
FEML	funded environmental morale leave
GCCDR	geographic Combatant Commander
GO/FO	general officer or flag officer
HDP-L	hardship duty pay – location
IDPL	inactive duty parental leave
J-1	Manpower and Personnel Directorate (of the Joint Staff)
JTR	Joint Travel Regulations
MMTF	military medical treatment facility
NCR&R	non-chargeable rest and recuperation
OCONUS	outside the continental United States
PCS	permanent change of station
QHDA	qualified hazardous duty area
RC	Reserve Component
R&R	rest and recuperation

ACRONYM	MEANING
SES	Senior Executive Service
SLA	special leave accrual
SLB	saved leave balance
SR&R	special rest and recuperation
TDY	temporary duty
U.S.C.	United States Code
USCG	United States Coast Guard
USD(P&R)	Under Secretary of Defense for Personnel and Readiness

G.2. DEFINITIONS.

Unless otherwise noted, these terms and their definitions are for the purpose of this issuance.

TERM	DEFINITION
absent over leave	Absent beyond the period for which leave was authorized.
absent with leave	Absent from a place of duty with permission or authorization.
absent without leave	Absent from a place of duty without permission or authorization and without the intention of deserting.
accrued leave	Leave earned by a Service member at a rate of 2.5 calendar days for each month of active service and credited to the Service member's leave account. The account balance of accrued leave must be reduced to 60 days at the end of the fiscal year, except as provided for in Paragraph 3.8.
active duty	Defined in Section 101 of Title 10, U.S.C.
active service	Defined in Section 101 of Title 10, U.S.C.
administrative absence	A period of authorized absence that is not chargeable to the Service member as leave.
adoption	An adoption that is arranged by a "qualified adoption agency" as that term is defined in Section 1052 of Title 10, U.S.C.

TERM	DEFINITION
advance leave	Leave granted to the Service member's leave account before its actual accrual. This leave is granted based on a reasonable expectation that the Service member will earn it during the remaining period of active duty.
annual leave	Leave granted in execution of a commander's leave program, chargeable to the Service member's leave account. This is also referred to as "ordinary leave."
appellate leave	Leave used while a Service member is sentenced by court-martial to a dismissal, or to receive a punitive discharge, in accordance with Section 876a of Title 10, U.S.C. Typically used while awaiting the appellate review.
bereavement leave	Non-chargeable leave to make arrangements required by the death of a Service member's spouse or child and to attend the spouse or child's funeral, burial, or memorial service.
birth event	Any live birth (including a live birth in which parental rights are immediately terminated and the baby is given up for adoption, or a live birth followed shortly thereafter by the baby's death), stillbirth, or late-term miscarriage (i.e., occurs at or after 20 gestational weeks) of a child to a covered RC Service member who is the birth parent.
birth parent	The Service member parent who gives birth.
child	Defined in Section 8 of Title 1, U.S.C.
combat operation	Defined in DoDI 1340.09.
command-sponsored dependents	Defined in DoDI 1315.18.
contingency operation	Defined in Appendix A of the JTR.
CONUS	Defined in DoDI 1315.18.
convalescent leave	Authorized leave granted to Service members receiving medical care, which is part of the treatment prescribed for recuperation and convalescence. It is also referred to as "sick leave."
COT	Defined in DoDI 1315.18.

TERM	DEFINITION
delay-en-route	Chargeable leave authorized in connection with travel, either PCS or TDY, including a COT (does not include any nonchargeable leave taken by the Service member in conjunction with the PCS or TDY).
dependent	Defined in Section 401 of Title 37, U.S.C.
dependent-restricted tour	Defined in DoDI 1315.18.
emergency leave	Leave granted due to an emergency situation (personal or family) that requires the Service member's presence.
emergency leave of absence qualifying emergency	Defined in Section 709 of Title 10, U.S.C.
EML	Leave granted in conjunction with the EML program. EML allows Service members permanently assigned to EML duty locations to take accrued leave at an EML destination site.
excess leave	Leave granted that exceeds accrued and advance leave and for which the Service member is not entitled to pay and allowances. Generally, a negative leave balance at the time of release from active military duty, discharge, first extension of an enlistment, desertion, or death will be considered excess leave regardless of the authority for which the leave resulting in the negative balance was granted.
FEML	Leave granted in conjunction with the FEML program. FEML provides Service members who are permanently assigned to an authorized FEML duty location a respite from isolation and austere or unhealthful conditions.
foster care	A 24-hour substitute care for children placed away from their parents or guardian and for whom the State agency has placement and care responsibility. This includes, but is not limited to, placements in foster family homes, foster homes of relatives, group homes, emergency shelters, residential facilities, childcare institutions, and pre-adoptive homes. See also the term and definition of placement for long-term foster care.
full-time National Guard duty	Defined in Section 101 of Title 10, U.S.C.

TERM	DEFINITION
GCCDR	Commander of a geographic Combatant Command.
geographic Combatant Command	A unified command with a broad continuing mission controlled by a single commander, composed of significant assigned components of two or more Military Departments, that is established and so designated in the Unified Command Plan by the President through the Secretary of Defense with the advice and assistance of the Chairman of the Joint Chiefs of Staff as having physical areas of responsibility. The Unified Command Plan designates these commands as having physical areas of responsibility as they operate in clearly delineated areas of responsibility and have a regional military focus.
graduation leave	A period of authorized absence, granted to graduates of the Service academies who are commissioned as regular officers in the Military Services, as a delay in reporting to their first permanent duty station.
healthcare provider	Defined in DoDI 6025.13.
household	The Service member and those dependents who either reside with them or depend on them for over one-half of their support.
immediate family	A Service member's spouse, parents, persons who have stood <i>in loco parentis</i> , siblings, children, the spouse's parents and siblings, and a sole surviving relative.
inactive duty training	Defined in Section 101 of Title 10, U.S.C.
liberty	An authorized absence, not chargeable as leave, granted for short periods to provide respite from the working environment or for other specific reasons. At the end of this period, Service members are on board or in the location from which they regularly commute to work. This includes regular and special liberty periods.
military exercise	A military maneuver or simulated wartime operation involving planning, preparation, and execution that is carried out for training and evaluation.
MMTF	A facility described in Subsections (b), (c), or (d) of Section 1073d of Title 10, U.S.C.
miscarriage	Loss of pregnancy in the uterus.

TERM	DEFINITION
missing status	Defined in Section 551(2) of Title 37, U.S.C.
mission essential tasks	Defined in DoD Directive 7730.65.
multiple qualifying events	When a Service member experiences any of these events within 1 year: - Giving birth to more than one child from a multiple pregnancy; - Giving birth to a child from a back-to-back pregnancy; - Adopting more than one minor child; - Having multiple minor children placed with the Service member for adoption or long-term foster care; or - A combination of any of these events.
non-covered ART	Only these components are included: - Ovarian stimulation and egg retrieval, including any needed medications and procedures required for retrieval; - Processing, and utilization for ART or cryopreservation; - Sperm collection and processing for ART or cryopreservation; - Intrauterine insemination; or - In vitro fertilization.
OCONUS	Defined in DoDI 1315.18.

TERM	DEFINITION
operational deployment	An event recorded in the joint capabilities requirement manager or contained in the annual Global Force Management Data Initiative-compliant tool in the Global Force Management Data Initiative reporting structure specified in DoDI 8260.03. Forces deployed in accordance with Executive orders, operational plans, or concept plans approved by the Secretary of Defense are also considered deployed. An operational deployment begins when most of the unit or detachment, or an individual not attached to a unit or detachment, leaves a homeport, station, or base, or leaves from an <i>en route</i> training location to meet a Secretary of Defense-approved operational requirement. A deployment ends when most of the unit or detachment, or an individual not attached to a unit or detachment, returns to their homeport, station, or base.
parental leave	A period of non-chargeable leave from military duties granted to a Service member following the birth of their child, adoption of a minor child by the Service member, or placement of a minor child with the Service member for adoption or long-term foster care to care for the child.
PCS	Defined in DoDI 1315.18.
period of bereavement	The timeframe in which a Service member may take bereavement leave as described in Paragraph 3.11.j.(6).
placement for adoption	Placing a minor child with the prospective adoptive parents in which there is a contractual agreement between the prospective adoptive parents and the qualifying adoption agency occurring before the adoption's legal finalization.
placement for long-term foster care	Placing a minor child in foster care in which there is an expectation and contractual agreement between the foster parents and the child-placing agency that the child remain in the foster parents' home for at least 24 months.
proceed time	A period of authorized absence, not chargeable as leave or travel time, authorized as a delay in executing certain PCS orders to enable the Service member to attend to the administrative details involved in matters such as disestablishing and/or establishing residences, changing vehicle licensing, and changing residence for taxation and voting purposes.
RC	Defined in Section 10101 of Title 10, U.S.C.

TERM	DEFINITION
RC maternity leave	A period of authorized leave from inactive duty training for a covered RC Service member receiving medical care following a birth event, which is granted to the RC Service member that is the birth parent for their recuperation.
recruiting assistance absence	An administrative absence for up to 14 days that the Secretary of the Military Department concerned or the Commandant of the USCG may grant to Service members who support recruiting.
reenlistment leave	Leave granted to enlisted Service members incident to their reenlistment.
regular liberty	A liberty period, not to exceed 3 days, except when the President authorizes a 4-day weekend in conjunction with a Federal holiday.
R&R leave	Leave granted when operational military considerations prevent the full use of annual leave. R&R programs are established in areas designated for hostile fire or imminent danger pay. Leave granted in connection with authorized R&R programs is chargeable to the Service member's leave account.
school-age dependent	A Service member's child who is enrolled in school from grade level kindergarten through 12th grade.
Selected Reserve	Those units and individuals in the Ready Reserve designated by their respective Service and approved by the Chairman of the Joint Chiefs of Staff, as so essential to initial wartime missions that they have priority over all other Reserves.
sick-in-quarters	A period of convalescent leave where the Service member is excused from duty for medical treatment or medically directed self-treatment, in home, barracks, or other non-hospital facilities (e.g., hotel, motel, occupying beds in dispensaries).
SLA	The authority of the first officer above the grade of O-6 in the chain of command of Service members who served in certain conditions that prevented them from taking accrued leave or to reduce their accrued leave balance to 60 days before the end of the fiscal year to carry forward leave that exceeds 60 days into the next fiscal year.
SLB	Leave earned before August 31, 1976.

TERM	DEFINITION
special liberty	Liberty granted outside of regular liberty periods for special occasions or circumstances by a unit commander's memorandum authorizing the special liberty (e.g., commanders awarding a 3- or 4-day special liberty for compensatory time off when individual members worked over a weekend or on a designated Federal holiday or non-chargeable leave day).
spouse	An individual, including a Service member, lawfully married to a Service member. An individual must be considered married if that individual's marriage is between two individuals and is valid in the State where the marriage was entered into or, in the case of a marriage entered into outside any State, if the marriage is between two individuals, is valid in the place where entered into, and the marriage could have been performed in a State. For purpose of this definition, a "State" means any of the 50 United States, the District of Columbia, or any U.S. territory or possession.
SR&R	An additional R&R leave period for an eligible Service member, who extends at a designated overseas location for at least 1 year.
surrogacy	A legal agreement whereby a person agrees to undergo pregnancy to deliver a child for another party to whom they will surrender and transfer the child for custody and care.
TDY	Duty at one or more locations, other than the permanent station, at which a Service member performs TDY governed by orders that provide for further assignment or pending further assignment to a new permanent station or for return to the old permanent station upon completing the TDY.
terminal leave	Annual leave chargeable to the Service member's leave account to assist separating Service members with their personal affairs. Also referred to as retirement, separation, or transition leave.
unit commander	A designated officer who is responsible for the administration, discipline, and training of all personnel assigned to any military element (e.g., a unit, an organization, or an area).

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- DoD Foreign Clearance Guide¹
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United States Code, Title 37
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